

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE ALL NECESSARY DOCUMENTS RELATED TO THE TRANSFER, PURCHASE AND SALE OF A SPECIFIED PORTION OF THE PROPERTY LOCATED AT 503 WEST COLLEGE DRIVE."

WHEREAS, as a result of the 2021 November election and through the use of the voluntary one percent (1%) specific purpose sales and use tax, voters in Laramie County approved the use of taxpayer funds for the relocation and replacement of three (3) fire stations;

WHEREAS, the City of Cheyenne wishes to build additional fire stations as needs demand. Response times indicate that a fire station would be beneficial in south Cheyenne off of College Drive;

WHEREAS, Steven and Carol Powers currently own property located at 503 West College Drive and are willing to sell this property to the City of Cheyenne;

WHEREAS, during the November election and through the use of the voluntary one percent (1%) specific purpose sales and use tax, the City intends to seek support from the voters in Laramie County for approval and use of taxpayer funds for the relocation and replacement of several fire stations including in the area of south Cheyenne;

WHEREAS, on July 20, 2023, the City received an appraisal valuing the estimated market value of the property located at 503 West College Drive, fee simple, at six hundred thirty-five thousand dollars (\$635,000.00) (See Exhibit A, at p.2);

WHEREAS, Steven and Carol Powers wish to sell their property located at 503 West College Drive, but they would like to lease the property from the City after the sale while they locate replacement property in Laramie County;

WHEREAS, the City has offered to purchase the property at 503 West College Drive in the amount of six hundred thirty-two thousand six hundred dollars (\$632,600.00), which reflect the appraised value minus two thousand four hundred dollars (\$2,400) in property taxes incurred over the term of the two (2) year lease period; and,

WHEREAS, upon completion of the purchase and sale agreement with the Steven and Carol Powers, the City intends to enter into a lease agreement with Steven and Carol Powers permitting them to lease the property from the City in the amount of one dollar (\$1.00) per year for a two (2) year lease period followed by a month-to month lease with a thirty (30) days termination notice by either party; and,

WHEREAS, the City intends to begin the process of planning and building a fire station at 503 West College Drive.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor is authorized to execute all necessary documents related to the transfer, purchase, and sale of the specified portion of the property located at 503 West College Drive as described in Exhibit A.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

CITY CONTRACT # _____

AGREEMENT FOR THE PURCHASE AND SALE OF LANDS

This Agreement for the Purchase and Sale of Lands ("Agreement") is made effective as of the date of execution ("Effective Date") of the last signing party below, and entered into by and between the City of Cheyenne, Wyoming, a municipal corporation organized under the laws of the State of Wyoming, having its principal offices at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Steven C. Powers and Carol S. Powers, 503 West College Drive, Cheyenne, Wyoming 82001, ("Sellers"), and sometimes individually referred to herein as "Party" and collectively to as "Parties."

WHEREAS, Sellers own real property situated at 503 West College Drive, Laramie County, Wyoming ("Real Property"), for a total appraised value of six hundred thirty-two thousand six hundred dollars (\$632,600.00), which parcel is particularly described in "Exhibit A – Legal Description and map of Real Property," attached to this Agreement and incorporated herein by this reference.

WHEREAS, Sellers desire to sell its Real Property to the City.

WHEREAS, the City wishes to purchase the Real Property.

NOW THEREFORE, in consideration of the mutual benefits and obligations set forth in this Agreement:

1. Purpose of Agreement. Subject to the terms and conditions set forth in Paragraphs 2-15: Sellers agrees to sell to the City, and the City agrees to purchase from Sellers the Real Property identified in Exhibit A, subject to all existing easements, rights of way, covenants, and restrictions, for a purchase price of six hundred thirty-two thousand six hundred dollars (\$632,600.00), to be paid by City in full at closing.

2. Terms of the Agreement. The Real Property and all improvements, structures, and fixtures situated on Real Property will be conveyed to the City in an "as is" condition without any representations or warranties, expressed or implied, relating to Real Property's physical condition and without ascribing any value to them.

3. Payment of Taxes. Prior to closing, Sellers shall pay, when due and payable, all property taxes and assessments asserted against the Real Property for Real Property for the current year and for all prior years. All such taxes for the current year shall be apportioned between the Parties on a pro rata basis as of the date of closing.

4. Title.

a. Prior to closing, the City shall have the right to obtain a Title Commitment for Real Property (the "Title Commitment") at the City's sole cost and expense. In the event the Title Commitment shows that Sellers is not vested with a good, marketable, and

insurable fee simple title Real Property sufficient to convey a Quit Claim Deed consistent with the one conveyed to Sellers at Book 2861, Pages 1074-1075, or that the Real Property is subject to liens, encumbrances, taxes, or assessments other than those identified in said Quiet Claim Deed which will not be discharged prior to closing, the City shall have the right, in its sole and absolute discretion, to declare this Agreement null and void.

b. Within ten (10) days following the receipt of the Title Commitment from the City, Sellers shall deliver to the City the following:

i. True, complete, and legible copies of all documents referred to in the Title Commitment to the extent that any such document has not been filed for record in the office of the Laramie County Clerk and ex-officio register of deeds;

ii. True, complete, and legible copies of all documents that are known to Sellers that are not referred to in the Title Commitment and that may affect the marketability of title to Real Property;

iii. True and complete copies or originals of any lease or occupancy agreements for any portion of Real Property;

iv. All mortgages, notes, and loan documents for any mortgage which encumbers Real Property on the date hereof, which mortgages, notes, and loan documents shall be discharged by Sellers prior to closing; and

v. Copies of any and all materials relating to pending or present litigation involving Real Property.

c. The City shall have twenty (20) business days from the date of receipt of the Title Commitment referred to in Section 4 in which to examine the same. If the City finds title to the Real Property to be other than as described in Section 4(a) hereof, the City shall, no later than the expiration of said period of twenty (20) business days, notify Sellers in writing specifying the defect or defects; provided, that if the City fails to give Sellers written notice of such defects before the expiration of said period of twenty (20) business days, the defects shown in the Title Commitment or in documents provided by Sellers shall be deemed to be Permitted Exceptions and waived as title objections. The City may raise as additional objections, however, any defect first shown by any title update between the date of the Title Commitment and the closing date by giving Sellers written notice of any such defect within five (5) business days after the City first has notice of same. If the City has given Sellers timely written notice of defects that render the title other than as required by this Agreement ("Defects"), and only in the event that the Defects were the result of Sellers' action or caused by Sellers' failure to act, Sellers shall use their best efforts to cause such Defects to be cured within ten (10) days

following receipt of such notice. In the event Sellers fails to eliminate such Defects, either party may terminate this Agreement. In the event Sellers creates any liens or encumbrances on Real Property which are capable of being satisfied by the payment of money at the closing, Sellers shall be obligated to use the Purchase Price, if any, to cure the Defects.

d. The date for elimination of the Defects may be extended until closing. In the event Sellers does not eliminate any Defect prior to or at closing, as the same may be extended under the preceding provision, the City shall have the option of either: (i) closing and accepting the title "as is," without reduction in the Purchase Price and without claim against Sellers therefore, or (ii) cancelling this Agreement. In the event of a Defect that was not caused by Sellers' action or caused by Sellers' failure to act, Sellers' only responsibility shall be to assign to the City Sellers' Title Insurance Policy or Sellers' rights under Sellers' Title Insurance Policy, whichever is applicable, and cooperate with the City in obtaining the assistance of Sellers' title insurer to remove the Defect.

e. Sellers shall not create any new exceptions to title and shall use his best efforts to prevent any other person or entity from creating new exceptions to title to the Real Property prior to closing.

5. Conditions Precedent.

a. The City's obligation to close this transaction shall be subject to fulfillment of the following conditions precedent:

i. Sellers shall, at Sellers' sole cost and expense, obtain releases, at or prior to closing, for any and all liens or encumbrances affecting the Real Property caused by Sellers' action or caused by Sellers' failure to act as of the date of closing, pursuant to the terms of this Agreement.

ii. Sellers shall not be in default in its obligations under this Agreement.

iii. The Escrow Agent, at the expense of the City, shall be prepared to deliver a Title Insurance Policy in a form acceptable to the City ("Title Policy") insuring the City's title to the Real Property in accordance with the terms of this Agreement.

vi. It shall be a condition precedent to this Agreement that the City shall take any and all necessary steps to have the parcel shown on the map on Exhibit A replatted and subdivided to create a new lot for the portion of the lot shown in the map on Exhibit A before closing and bear all cost and expenses

related to the same. If the City is not successful in replatting/subdividing the portion of the lot to conform to the map shown on Exhibit A, then either party may terminate this Agreement.

vii. It shall also be a condition precedent to this Agreement that the City shall develop the Real Property in substantially the same way as identified on the site plan identified on Exhibit B, which is attached hereto and incorporated herein by reference, so that, during and after construction, both parties have vehicular access around their respective parcels for ingress and egress for semi tractor trailers, emergency vehicles of all kinds, and other vehicles. The terms of this paragraph shall survive closing.

b. In the event any of the foregoing conditions precedent are not fulfilled as of closing (or earlier date where specified otherwise), then the City shall have the option of either: (i) waiving the condition and closing "as is" without reduction in the Purchase Price or claim against Sellers therefore, provided, that Sellers assigns to the City all of Sellers' right, title, and interest to the Title Insurance Policy it obtained when it acquired the Property, or (ii) cancelling this Agreement by written notice to Sellers.

6. Sellers' Representations and Warranties.

a. Sellers hereby represents and warrants that the following are true statements as of the date of this Agreement and shall be true as of the date of closing, and Sellers agrees to deliver a certificate confirming that the following representations and warranties are true as of the date of the closing.

i. Sellers has full power and authority to sell and convey the Real Property and to execute this Agreement and such other documents described herein to be executed.

ii. Sellers now has, and will have at closing, good, marketable, and indefeasible title in fee simple to the Real Property sufficient to convey a Quiet Claim Deed consistent with the deed recorded at Book 2861, Pages 1074-1075 and subject to the Permitted Exceptions and no Party, except as herein set forth, has or shall have any right in, or to acquire, the Real Property.

iii. At closing, the Real Property shall be free and clear of all encumbrances except the Permitted Exceptions as set forth in this Agreement.

iv. At closing, the Real Property shall be free from any and all actions, suits, claims, assessments, or proceedings pending or, to the knowledge of Sellers, threatened that could materially adversely affect the ownership, operation, or maintenance of the Real Property or its ability to perform hereunder.

v. To the best of Sellers' knowledge, the Real Property and Sellers is not currently in violation of or subject to: (i) any existing, pending, or threatened investigation or inquiry by any governmental authority; or (ii) any remedial obligations under any applicable laws pertaining to health or the environment (hereinafter sometimes collectively called "Applicable Environmental Laws"), including, without limitation, the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended ("CERCLA"), and the Resource Conservation and Recovery Act of 1976, as amended ("RCRA"). Sellers shall have no obligation to remove or take any action to cure or remediate any environmentally hazardous material from the Real Property if any environmentally hazardous material is found on the Real Property.

vi. Sellers does not have knowledge of any hazardous substances or solid wastes that have been disposed of or otherwise released on the Real Property. The terms "hazardous substance" and "release" shall have the meanings specified in CERCLA, and the terms "solid waste" and "disposal" or "disposed" shall have the meanings specified in RCRA; provided, to the extent that the laws of the State of Wyoming establish a meaning for "hazardous substance," "release," "solid waste," or "disposal" that is broader than that specified in either CERCLA or RCRA, such broader meaning shall apply.

vii. There are no parties in possession of any portion of the Real Property, whether as lessees, tenants at sufferance, trespassers, or otherwise.

b. Sellers shall not intentionally cause any of the representations and warranties contained herein to become materially incorrect, nor authorize any action which would do so. If subsequent to the execution of this Agreement and on or before closing, Sellers nonetheless has knowledge that any of the representations and warranties set forth herein have become incorrect in any respect ("Discrepancy"), that Sellers shall promptly notify the City, in writing, of the occurrence of such event. The City shall have a right to approve or disapprove any such Discrepancy, which approval or disapproval shall be given by written notice delivered to the Sellers within ten (10) days prior to the closing for the City to evaluate the effect of such Discrepancy. If the City waives such Discrepancy, and elects to acquire the Real Property, the Sellers represents and warranties contained herein shall be deemed to have been made as of the closing, subject to the waived Discrepancy. If the City disapproves of the Discrepancy, and Sellers fails to cure same, then upon written notice thereof to the City, this Agreement shall be terminated and all rights and obligations of the Parties hereunder shall terminate.

c. Except for the representations of Sellers set forth in Section 6 that shall survive for one (1) year from the closing, the express representations and warranties made in this Agreement shall merge into any instrument or conveyance delivered at

closing and shall not survive closing.

7. Risk of Loss. The Real Property shall be conveyed to the City is substantially and materially the same condition as on the date this Agreement is executed by the City, ordinary wear and tear excepted.

8. Default Provisions.

a. In the event of the wrongful failure or refusal of the City to close this transaction after sixty (60) days written notice, Sellers shall be entitled to those remedies as may be provided by law.

b. In the event of Sellers' failure to close in accordance with the terms and provisions of this Agreement for sixty (60) days after written notice, the City, at its option and as the City's sole and exclusive remedy for default of Sellers, shall have the right to terminate this Agreement.

9. Closing Costs and Expenses. At closing, the City shall pay the cost of the Title Insurance Policy to be issued to the City and the cost of the survey, the cost of replatting/subdividing the portion of the parcel shown on the map on Exhibit A, and all recording fees necessary to record instruments received by the City at closing. Sellers shall pay the recording costs with respect to documents necessary to clear title at closing and all instruments received by Sellers at closing. The closing agent's fee shall be paid equally by Sellers and the City. Each Party shall pay that Party's attorney's fees, if any.

10. Closing.

a. The closing of this transaction shall be held on _____, 2023, after the satisfaction of all the conditions of closing ("Closing Date"). The parties agree that First American Title Company shall prepare the closing documents.

b. At closing, Sellers shall deliver:

j. A Quit Claim deed duly executed and acknowledged in proper form for recording conveying to the City good and indefeasible fee simple title in and to Real Property, subject only to the Permitted Exceptions and to encumbrances, easements, rights of way, covenants, and restrictions identified in said Quiet Claim Deed conveyed to Sellers at Book 2861, Pages 1074-1075;

ii. An assignment of all rights appurtenant to the Real Property, if any, excluding mineral interests, as provided above;

- iii. A title affidavit and a mechanic's lien affidavit;
- iv. An affidavit of exclusive possession;
- v. An affidavit pursuant to Internal Revenue Code Section 1445(b)(2) with respect to Sellers' status as a non-foreign person;
- vi. A certificate, or other document as acceptable to the City, confirming Sellers' authority to sell Real Property; and,
- vii. Such other documents as are usually required to insure the City's title.

c. At closing, the City, at the City's expense, shall receive an Owner's Title Insurance Policy in a form acceptable to the City, issued by a Title Insurance Company in the full amount of the Purchase Price, insuring the City's indefeasible fee simple title to Real Property by quit claim deed, subject only to the Permitted Exceptions and the printed exceptions contained in the standard form of Sellers' Title Insurance Policy and to encumbrances, easements, rights of way, covenants, and restrictions identified in said Quit Claim Deed conveyed to Sellers at Book 2861, Pages 1074-1075.

11. Brokers. The Parties each represent and warrant to the other that no Party to this transaction shall be responsible for the payment of any compensation or commission due any real estate agent, broker, salesman, or finder unless that Party has engaged the real estate agent, broker, salesman, or finder in writing. If a claim for compensation or commission in connection with this transaction is made by any agent, broker, salesman, or finder claiming to have dealt through or on behalf of one of the Parties hereto, such Party shall indemnify, defend, and hold harmless the other Parties hereunder from and against all liabilities, damages, claims, costs, fees, and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and appellate levels) with respect to said claim for compensation or commission. Anything to the contrary notwithstanding, the provisions of this paragraph shall survive the closing and any cancellation or termination of this Agreement.

12. Assignability. Neither Party shall have the right to assign this Agreement without the express written consent of the other Party.

13. Notices. Any notices required or permitted to be given under this Agreement shall be delivered by hand or mailed by certified or registered mail, return receipt requested, or overnight delivery service in a postage prepaid envelope, and addressed as follows:

If to the City/City: City of Cheyenne
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

ATTN: City Clerk

If to Sellers:

Steven C. Powers and Carol S. Powers
503 West College Drive
Cheyenne, Wyoming 82001

14. Operation of the Real Property prior to Closing. During the period between the date hereof and the Closing Date, Sellers shall:

a. Keep the Real Property in substantially the same repair and condition as of the date hereof, but excluding damages to the Real Property caused by the City's Inspection or the City's use of the Real Property;

b. Comply with all state and municipal laws, ordinances, regulations, and orders relating to the Real Property;

c. Comply with all the terms, conditions, and provisions of all liens, mortgages, agreements, insurance policies, and other contractual arrangements relating to the Real Property, make all payments due thereunder, and suffer no default therein;

d. Without written approval of the City, neither negotiate nor enter into any new contract or modify any existing contract affecting the use or operation of the Real Property which cannot be terminated without charge, cost, penalty, or premium on or before the Closing Date;

e. Operate, manage, and maintain the Real Property in the usual and customary manner for similar property;

f. Promptly notify the City in writing if any material change occurs in the occupancy or conditions affecting the Real Property; and

g. Provide the City and its representatives, employees, and agents full and complete access during normal business hours to the Real Property and adjacent areas as provided in this Agreement.

15. Miscellaneous.

a. This Agreement shall be construed and governed in accordance with the laws of the State of Wyoming. Except for enforcement of the terms and conditions of this Agreement as between the Parties, the City reserves all defenses and immunities under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and other applicable constitutional and statutory provisions of the State of Wyoming. The venue

for any legal proceedings shall be the First Judicial District Court sitting in Laramie County, Wyoming.

b. In the event any term or provision of this Agreement be determined by appropriate judicial authority to be illegal or otherwise invalid, such provision shall be given its nearest legal meaning or be construed as deleted as such authority determines, and the remainder of this Agreement shall be construed to be in full force and effect.

c. Any exhibits attached to this Agreement are incorporated in and made a part of this Agreement.

d. This Agreement constitutes the entire understanding and agreement between the Parties, and there are no understandings, agreements, representations, or warranties except as specifically set forth herein.

e. This Agreement may not be changed, altered, or modified except by an instrument in writing signed by the Party against whom enforcement of such change would be sought.

f. This Agreement shall be binding upon the Parties hereto and their respective successors and assigns.

g. The failure of any Party at any time or times to require performance of any provision hereof shall in no manner affect its right at a later time to enforce the same. No waiver by any Party of any condition, or of any breach of any covenant, agreement, representation, or warranty contained in this Agreement, in any one or more instances, shall be deemed to be or construed as a further or continuing waiver of any such condition or breach or waiver of any other condition or of any breach of any other covenant, agreement, representation, or warranty.

h. If the final date of any period provided for herein for the performance of an obligation or for the taking of any action falls on a Saturday, Sunday, or banking holiday, then the time of that period shall be deemed extended to the next day which is not a Sunday, Saturday, or banking holiday. All time periods expiring on a specific date or period herein shall be deemed to expire at 5:00 p.m. Mountain Standard or Mountain Daylight Time, as applicable.

j. This Agreement may be executed in any number of counterparts, each of which, when so executed and delivered, shall be deemed an original, but such counterparts together shall constitute but one agreement.

j. During the term of this Agreement, Sellers' shall not list the Real Property for sale, rent, or exchange or otherwise offer the Real Property for sale, rent, or exchange.

Sellers' shall have the right to disclose this Agreement to any lending institution.

k. Time is of the essence hereof, and any party who fails to tender any payment, or perform any other condition hereof as herein provided, shall be in default under this Agreement.

l. The parties acknowledge that this transaction involves a 1031 exchange and Buyer agrees to cooperate in all respects and perform all tasks requested in any way related to said 1031 transaction.

[Signatures on following page]

In witness thereof, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement.

FOR THE CITY/CITY:

Patrick Collins, Mayor

Date

(SEAL)

Attest:

Kristina F. Jones, City Clerk

Date

FOR SELLERS:

Steven C. Powers

Date

Carol S. Powers

Date

[Notary signatures on following page]

State of Wyoming)
) ss.
County of Laramie)

This **Agreement for the Purchase and Sale of Lands**, consisting of ___ pages and secured by a staple, was acknowledged before me by **Patrick J. Collins, Mayor of the City of Cheyenne** ("City"), who signed said instrument on behalf of the City, appeared before, and was personally known to the officer making the certificate, and was by him duly sworn and upon oath represented that he was the Mayor of the City, that the instrument was signed on behalf of the City, and that the officer who executed the instrument on behalf of the City acknowledged the instrument to be the free act and deed of the City this _____ day of _____, 2023.

Witness my hand and official seal.

Notary Public

My Commission Expires: _____

State of Wyoming)
) ss.
County of Laramie)

This **Agreement for the Purchase and Sale of Lands**, consisting of ___ pages and secured by a staple, was acknowledged before me by Steven C. Powers and Carol S. Powers, who signed said instrument on behalf of **Sellers**, appeared before, and was personally known to the officer making the certificate, and was by him duly sworn and upon oath represented that he was the Manager of the company, that the instrument was signed on behalf of the company, and that the officer who executed the instrument on behalf of the company acknowledged the instrument to be the free act and deed of the company this _____ day of _____, 2023.

Witness my hand and official seal.

Notary Public

My Commission Expires: _____

Exhibit A

503 W COLLEGE DR

COUNTRY HOMES SUBDIVISION: LOT 1, BLOCK 1





CITY ATTORNEY'S OFFICE

Municipal Building
2101 O'Neil Avenue, Room 308
Cheyenne WY 82001

Date: October 9, 2023

To: Kevin Perry, Red Diamond Realty kevin@reddiamond.realestate
c/o Steven C. Powers and Carol S. Powers

Re: Letter of Intent to Purchase:
503 West College Drive, Cheyenne, Wyoming, 82007
PIDN: 13661720100100

Dear Mr. Perry:

On behalf of the City of Cheyenne (Buyer), I have been authorized to submit this Letter of Intent to Purchase the above referenced real property. Buyer's Counteroffer to Seller's Counter to LOI.

1. SELLER - Steven C. Powers and Carol S. Powers, husband and wife.
2. BUYER - City of Cheyenne.
3. PROPERTY - PIDN: 13661720100100 (1.52 acres).
4. BUYER'S OFFER TO PURCHASE - Appraisal has been completed and Buyer is willing to offer six hundred thirty-two thousand six hundred dollars (\$632,600.00) for the purchase of the property. This amount reflect the appraised value (\$635,000.00) minus the two thousand four hundred dollars (\$2,400.00) in property taxes incurred over the term of the two (2) year lease period followed by a month-to-month lease with 30 days notice from Seller to Buyer (please se item 8a below);
5. REMAINING CITY REQUIREMENTS AND PROCESSES -
 - a. Phase I EPA Environmental Assessment (8-10 weeks);
 - b. Title Search and Commitment;
 - c. Offer/Negotiation/Executed Contract;
 - d. City Council Approval (up to 4 weeks); and
 - e. Closing. Buyer shall endeavor to expedite all steps with the intent of closing on or before 12-31-23.
6. CONDITION OF PROPERTY - Buyer agrees to purchase the Property in its current "as is" condition.
7. CLOSING COSTS - Buyer agrees to pay all closing costs associated with the purchase to include taxes, title insurance, title service fee, transfer fees, and tax stamps.
8. CONDITIONS OF INTENT TO PURCHASE -
 - a. Upon purchase, the City intends to lease the property back to the Seller for a lease-term of two (2) years, followed by a month-to month lease with 30 days notice form Seller or Buyer to vacate with a preferred move date outside winter months and at a lease payment of one dollar (\$1.00) per year;

October 9, 2023

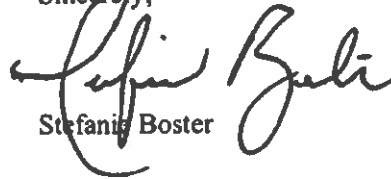
Page 2

and Seller shall maintain and pay for a renters insurance policy at their sole cost for the term of the lease.

- b. The City reserves the right to rescind this Letter of Intent to Purchase, and cease negotiations on the subject property, if at the time the offer is presented to the Seller it is not accepted by the Seller. The City intends for this letter to serve as a statement of good faith interest in the subject property, but cannot at the current time commit our interest beyond the items presented in this Letter of Intent to Purchase.
- c. Seller will retain ~~steel~~ pole barn structure adjacent to Pine Street to be removed from property.
Steel

This offer expires on October 13, 2023 at 5:00 p.m. mountain standard time. Thank you for your time and attention. I am available to answer any questions.

Sincerely,


Stefanie Boster

cc: Fire Chief John Kopper

DocuSigned by:

95C54D6F9C81484

10/10/2023

DocuSigned by:

F1C4E8DC78EC4A1

10/10/2023

APPRAISAL REPORT

66,211 SF of Land Located at
503 West College Drive
Cheyenne, Wyoming, 82007



Prepared For:

John B. Kopper, Fire Chief
Cheyenne Fire Rescue
2101 O'Neil Avenue
#307-637-6315
jkopper@cheyennecity.org

Date of Value:

July 20, 2023

Job ID:

23-0810C

Prepared By:

Christopher Brown, MAI
Appraisals, Inc.
Wyoming State Certified
General Real Estate Appraiser #321

APPRAISALS, INC.

7915 Braehill, Cheyenne, WY 82009
chris@appraisewyoming.com
#307-286-8980

August 28, 2023

John B. Kopper, Fire Chief
Cheyenne Fire Rescue
2101 O'Neil Avenue
#307-637-6315
jkopper@cheyennecity.org

I have prepared an appraisal report for the property shown below. The client listed above is the only intended user of the report. The purpose of the report is to estimate market value.

This letter and the value below must be considered in conjunction with the attached appraisal report. My analyses, opinions and conclusions were developed, and this report has been prepared, in conformity with the Uniform Standards of Professional Appraisal Practice. After considering all the data with regard to the subject property and based upon the facts and conclusions within this appraisal report, it is my opinion that the property under appraisal has the following estimated market value:

Estimated Market Value, Fee Simple
503 East College Drive, Cheyenne, WY
66,211 SF of Land

As Is As Of July 20, 2023

\$ 635,000

Thank you for this appraisal assignment. If you have any questions about it, please feel free to contact me.

Sincerely yours,



Christopher S. Brown, MAI
Wyoming State Certified General Real Estate Appraiser #321

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SCOPE OF WORK

Identify the Appraisal Problem

➤ Client and Intended Users

I was engaged to perform this assignment by John Kopper of Fire Chief, Cheyenne Fire Rescue, City of Cheyenne. Intended users of the report include Cheyenne Fire Rescue and the City of Cheyenne.

➤ Intended Use

This appraisal report shall be used to assist in acquisition of the subject property. Any other use of this appraisal report is not authorized.

➤ Effective Date of the Opinions and Conclusions

The subject property is appraised as is as of July 20, 2023, the inspection date. The report was prepared during July and August of 2023.

➤ Inspection

Christopher Brown personally inspected the property.

➤ Prior Services Performed

I have not performed any services regarding the subject property within the three-year period immediately preceding acceptance of the assignment, as an appraiser or in any other capacity.

➤ Type and Definition of Value

The assignment is to estimate the market value of the fee simple estate of the subject land.

Market Value Definition

Market value means the most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

1. buyer and seller are typically motivated;
2. both parties are well informed or well advised and acting in what they consider their own best interests;
3. a reasonable time is allowed for exposure in the open market;
4. payment is made in terms of cash in U.S. dollars or in terms of financial arrangements comparable thereto; and
5. the price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale.

This definition is from regulations published by federal regulatory agencies pursuant to Title XI of the Financial Institutions Reform, Recovery, and Enforcement Act (FIRREA) of 1989 between July 5, 1990, and August 24, 1990, by the Federal Reserve System (FRS), National Credit Union Administration (NCUA),

SCOPE OF WORK, CONTINUED

Federal Deposit Insurance Corporation (FDIC), the Office of Thrift Supervision (OTS), and the Office of Comptroller of the Currency (OCC). This definition is also referenced in regulations jointly published by the OCC, OTS, FRS, and FDIC on June 7, 1994, and in the *Interagency Appraisal and Evaluation Guidelines*, dated October 27, 1994.

Fee Simple Estate

Absolute ownership unencumbered by any other interest or estate, subject only to the limitations imposed by the governmental powers of taxation, eminent domain, police power, and escheat. Source: Appraisal Institute, *The Dictionary of Real Estate Appraisal*, 7th ed. (Chicago: Appraisal Institute, 2022).

Scope of Work

- Degree to which the property is inspected: The subject property was personally inspected by the appraiser. With regard to the site, particular attention was given to the availability of utilities, presence of onsite and offsite improvements, specific location, size and configuration, and present or potential land use restrictions. The improvements located on this site were analyzed to determine the quality and condition of construction, age, size, use, functionality, state of completion and the overall contribution to the property as a whole. The inspection of the site and improvements is for the purposes of estimating the market value of the property. The property “inspection” is really more of an “observation”. It is not to be regarded as a full property inspection of the type intended to reveal defects in mechanical systems, structural integrity, roofing, siding, or any other property component. The appraiser claims no special expertise in these areas, nor is an expert regarding wood destroying (or other) insects, radon gas, hazardous materials, or mold. The client is invited and encouraged to employ qualified experts to inspect and address any area of concern. If negative conditions are discovered, the value estimated may require modification.

- Extent of research into physical or economic factors that could affect the property:

The area, community, and neighborhood were personally inspected and studied, and trends which could affect the subject property have been considered in the valuation.

- Type and Extent of Data Research:

I searched the market for comparable sales. Emphasis has been placed on finding comparables that are recent and are similar in type, use, location, age, quality, condition, appeal, etc. If sufficient comparables to form an opinion are not available then the search must be widened to include sales that are not as recent, or are not similar in some aspects. In this case the appraiser has attempted to bracket the subject property with comparables that are inferior as well as comparables that are superior, to establish a clear range of value. Market data appropriate to the valuation of this property were collected and analyzed in a variety of ways. Comparable sales have been located using public records and by interviewing real estate participants familiar with the area and property type. Once located, the particulars of each sale were verified with parties involved in the transaction (typically the buyer, seller, broker, appraiser, or lender).

SCOPE OF WORK, CONTINUED

Wyoming is a nondisclosure state so there is no public record of sale prices. The market data in this report is deemed reliable but is not guaranteed.

➤ **Type and Extent of Analyses Applied:**

The value of the subject land has been estimated using the sales comparison approach.

LIMITING CONDITIONS

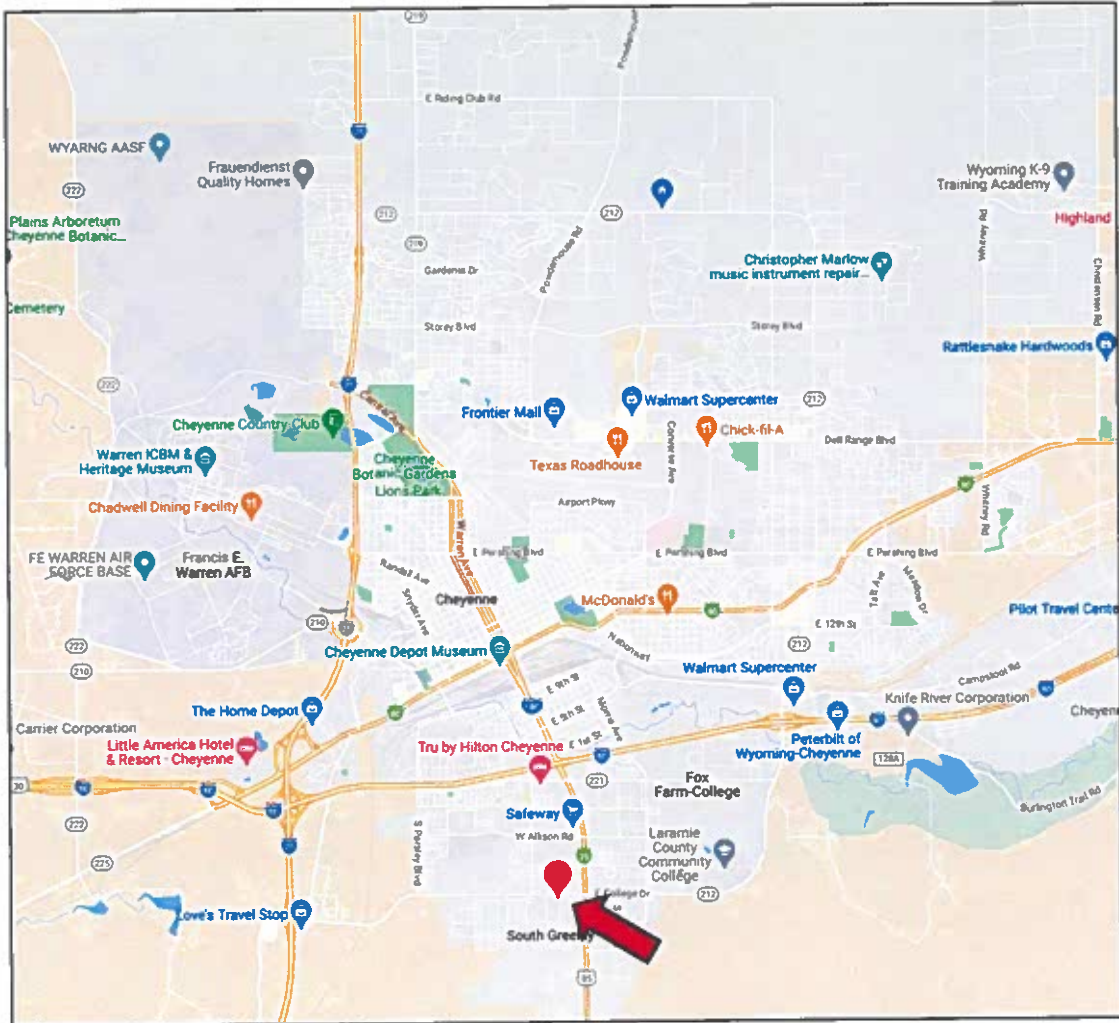
1. Any user of this report agrees to the following limiting conditions.
2. The appraiser assumes no responsibility for matters of a legal nature affecting the property appraised or the title thereto, nor does the appraiser render any opinion as to the title, which is assumed to be good and marketable. The property is appraised as though under responsible ownership.
3. Any sketch in the report may show approximate dimensions and is included to assist the reader in visualizing the property. The appraiser has made no survey of the property.
4. The appraiser is not required to give testimony or appear in court because of having made the appraisal with reference to the property in question, unless arrangements have been previously made therefore.
5. Any distribution of the valuation in the report between land and improvements applies only under the existing program of utilization. The separate valuations for land and building must not be used in conjunction with any other appraisal and are invalid if so used.
6. The appraiser assumes that there are no hidden or unapparent conditions of the property, subsoil, or structures, which would render it more or less valuable. The appraiser assumes no responsibility for such conditions, or for engineering which might be required to discover such factors.
7. The property has been appraised as though free and clear of mortgages, liens, servitude, and encumbrances, except as may be described within the appraisal report.
8. Information, estimates, and opinions furnished to the appraiser, and contained within the report, were obtained from sources considered reliable and believed to be true and correct. However, no responsibility for accuracy of such items furnished the appraiser can be assumed by the appraiser.
9. Neither all nor any part of the contents of this report shall be conveyed to the public through advertising, public relations, news, sales, or other media without the written consent and approval of the author, particularly as to the valuation conclusion, the identity of the appraiser or firm with which it is connected, or any reference to the Appraisal Institute.
10. Possession of this report or any copy thereof does not carry with it the right of publication, nor may the same be used for any purpose by anyone except the

LIMITING CONDITIONS, CONTINUED

appraiser's employer, without the previous written consent of the appraiser, and in any event, only in its entirety.

11. Unless otherwise stated in this report, the subject property is appraised without a specific compliance survey having been conducted to determine if the property is or is not in conformance with the requirements of the Americans with Disabilities Act. The presence of architectural and communication barriers that are structural in nature and would restrict access by disabled individuals may adversely affect the property's value, marketability, and/or utility.
12. Unless otherwise stated in this report, the existence of hazardous materials, which may or may not be present on the property, was not observed by the appraiser. The presence of substances such as asbestos, urea-formaldehyde foam insulation, asbestos, or other potentially hazardous materials may affect the value of the property. The appraiser has no knowledge of the existence of such materials on or in the property. The appraiser, however, is not qualified to detect such substances. The presence of potentially hazardous materials may affect the value of the property. The value estimate is predicated on the assumption that there is no such material on or in the property that would cause a loss in value. No responsibility is assumed for any such conditions, or for any expertise or engineering knowledge required to discover them. The client is urged to retain an expert in this field, if desired.
13. It should be understood that this is an Opinion of Value, based upon the data available to the Appraiser(s), not a guarantee or warranty of value.
14. The limit of liability shall be no more than the remuneration received.
15. When feasible within the scope of work, all comparable sales, listings, and rentals have been viewed by the appraiser. When it is not feasible to view all comparables due to time and geographic limitations, the appraiser has relied on information (including photographs, sketches, descriptions, and other items) from other sources. This information is relied upon subject to the extraordinary assumption that it is reliable and representative of the comparable property at the relevant time.
16. Mineral rights, if any, are specifically excluded from consideration in this appraisal report.

CITY MAP



CITY DATA

Geographic Location:

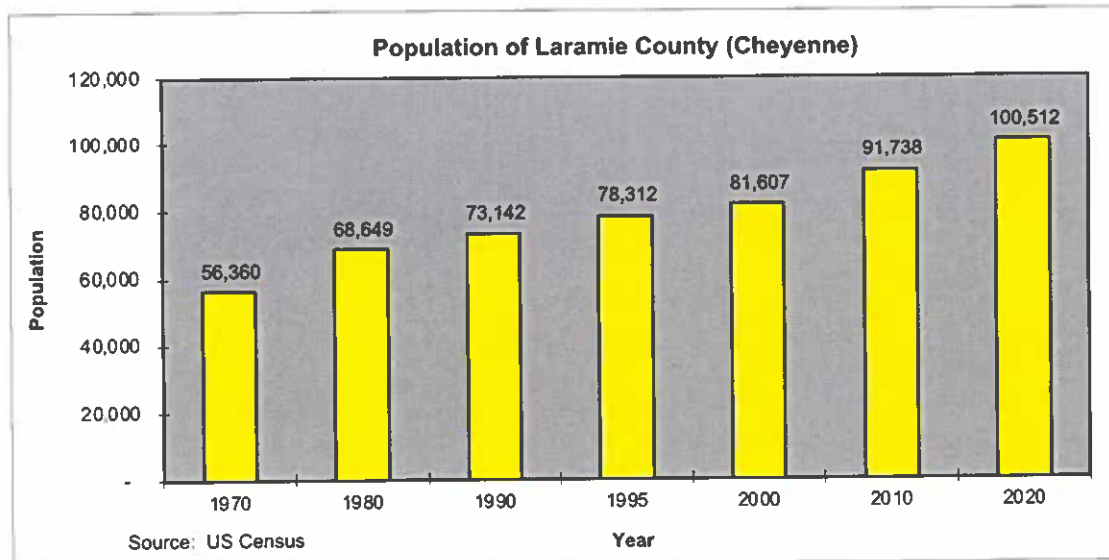
Cheyenne is located in the southeastern corner of Wyoming, ten miles north of the Colorado border and 40 miles west of the Nebraska border. The city is located at a major division point for the Union Pacific Railroad and at the juncture of interstate highways I-80 and I-25.

Physical Factors:

Cheyenne is located on rolling rangelands at an altitude of approximately 6,100 feet above sea level. The soil is typically heavy clay with some sandy loam, which usually requires enrichment to be productive. Cheyenne has an average annual precipitation of 15.1 inches. Cheyenne has an extensive Greenway network of wide sidewalks along open spaces or landscape buffers that is unique for the region and a significant amenity in the warm months for recreation and transport.

Demographics:

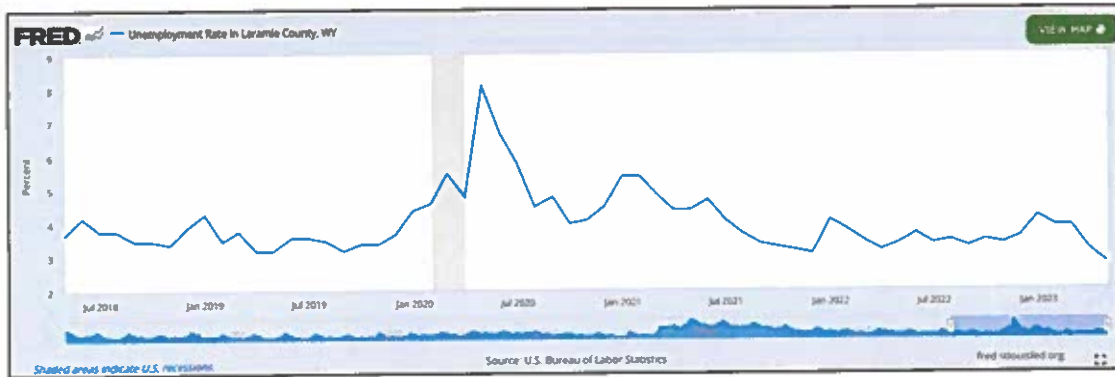
Cheyenne is the largest city in Wyoming with a 2020 population of 65,132. The bulk of the federal government offices in Wyoming are located in Cheyenne, which has helped stabilize the economy and population in Laramie County. Population growth for Laramie County from 2000 to 2019 averaged about 1.0% per year. Laramie County Community College (LCCC) is in Cheyenne. Cheyenne is in the top quartile for percent of population with associates degrees, but in the bottom quartile for bachelor's degrees. In 2019 the state legislature approved a bill to allow community colleges to do some four-year degrees. This should significantly increase the education level in Cheyenne in the long run.



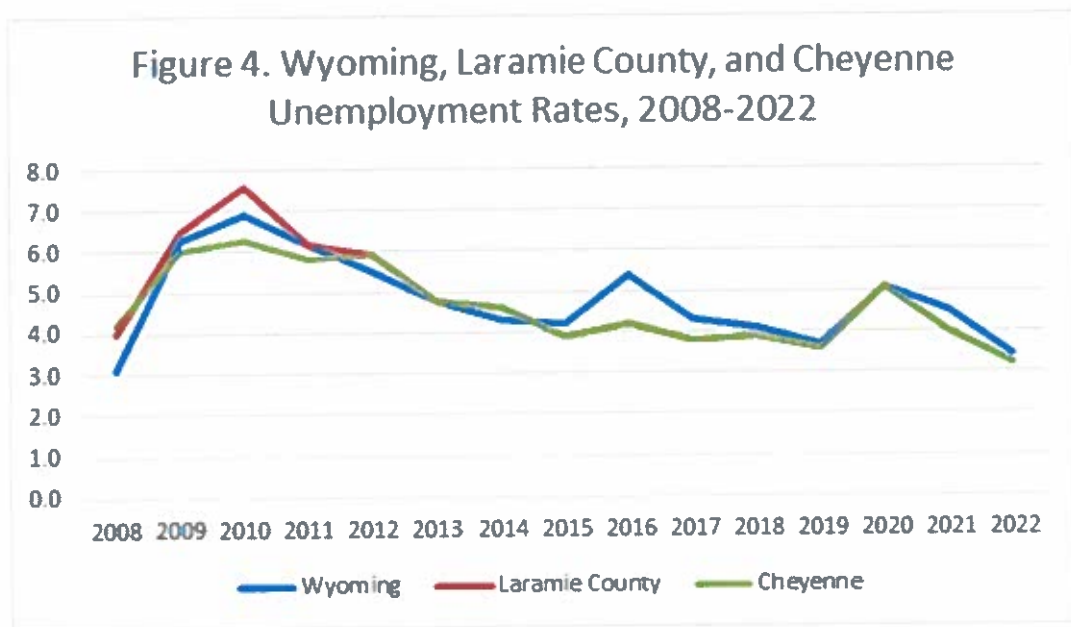
CITY DATA, CONTINUED

ECONOMIC TRENDS IN CHEYENNE

Unemployment in Laramie County remains very slow at 2.8%.



<https://fred.stlouisfed.org/series/WYLARA0URN>



wcda

CITY DATA, CONTINUED

The following graph and table show overall business activity. Both Total Taxable Sales and Retail Sales are at all-time highs in Laramie County.

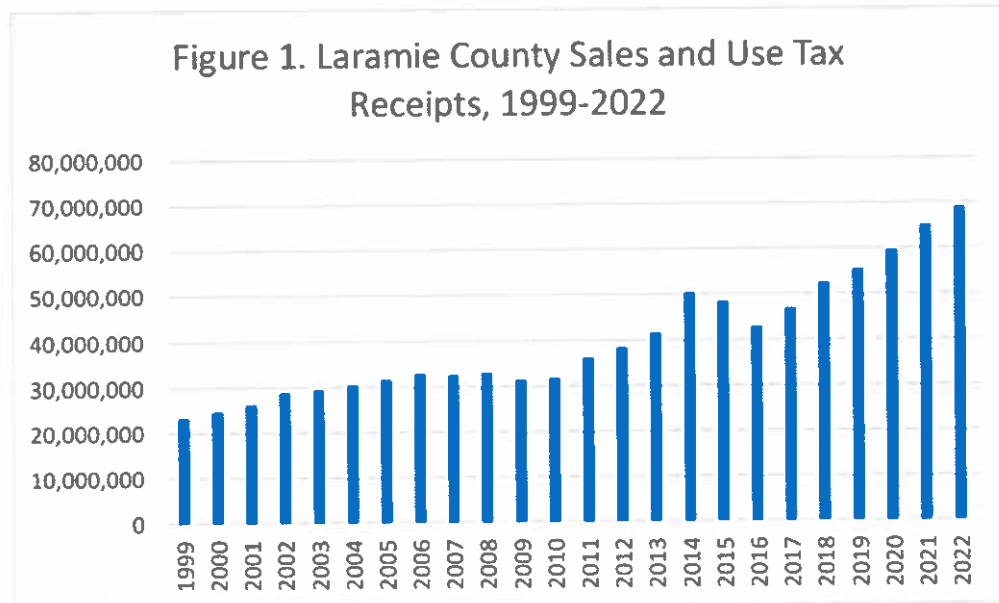


Table 1.1

Laramie County Total Taxable Sales and Retail Sales by Subsectors

2017 - 2022
(Dollars)

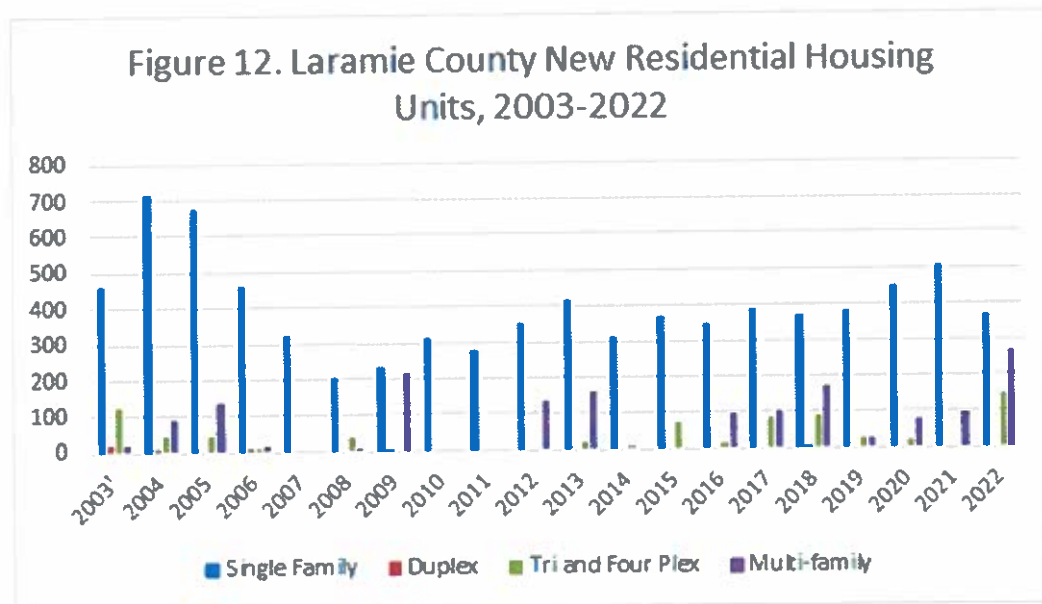
	2017	2018	2019	2020	2021	2022
Total Taxable Sales	2,137,001,500	2,392,252,000	2,555,179,000	2,705,636,700	2,958,323,700	3,145,669,800
Total Retail Sales	1,329,037,100	1,429,816,900	1,493,546,000	1,499,441,700	1,777,775,200	1,835,144,000
Auto Dealers and Parts	86,425,700	90,433,700	101,928,100	96,294,400	104,429,200	105,183,700
Gasoline Stations	51,803,600	65,138,600	77,202,800	61,170,600	72,842,100	81,136,200
Home Furniture and Furnishings	35,083,800	36,271,700	39,484,300	35,511,200	40,472,000	37,783,600
Electronic and Appliance Stores	50,306,500	92,621,900	41,769,300	64,907,000	80,174,500	84,337,700
Building Material & Garden	211,983,800	225,493,500	262,388,400	280,704,300	339,254,300	378,416,100
Grocery and Food Stores	24,055,400	20,371,000	19,761,500	20,981,600	22,350,400	22,952,000
Liquor Stores	19,019,300	19,750,300	19,633,300	25,707,200	24,712,300	27,314,300
Clothing and Shoe Stores	48,093,400	52,010,500	56,265,800	47,142,100	62,795,500	62,974,900
Department Stores	40,518,300	36,835,100	34,727,200	35,013,700	35,710,700	38,513,300
General Merchandise Stores	143,634,600	164,366,500	162,352,900	150,281,900	174,299,100	208,629,200
Miscellaneous Retail	86,111,600	89,320,700	113,546,100	114,739,400	150,164,600	123,405,800
Lodging Services	57,754,200	61,605,500	65,698,000	42,922,600	68,390,700	74,546,700
Eating and Drinking Places	194,853,000	200,028,400	217,129,000	203,350,200	251,617,700	260,620,800
Automobile Sales	279,393,900	275,569,500	281,659,000	320,715,500	350,562,100	329,329,200

Source: WCEBA analysis from Wyoming Department of Revenue

<https://www.wyomingeconomicdata.com/>

CITY DATA, CONTINUED

The chart below shows the historical building permits for Laramie County. The pandemic drove strong demand for new housing. Single-family residential construction was very strong in 2020 and 2021, but declined somewhat in 2022. Multi-family construction had its strongest year ever in 2022.



<https://www.wyomingeconomicdata.com/wp-content/uploads/Annual-Trends-Report-2023.pdf>

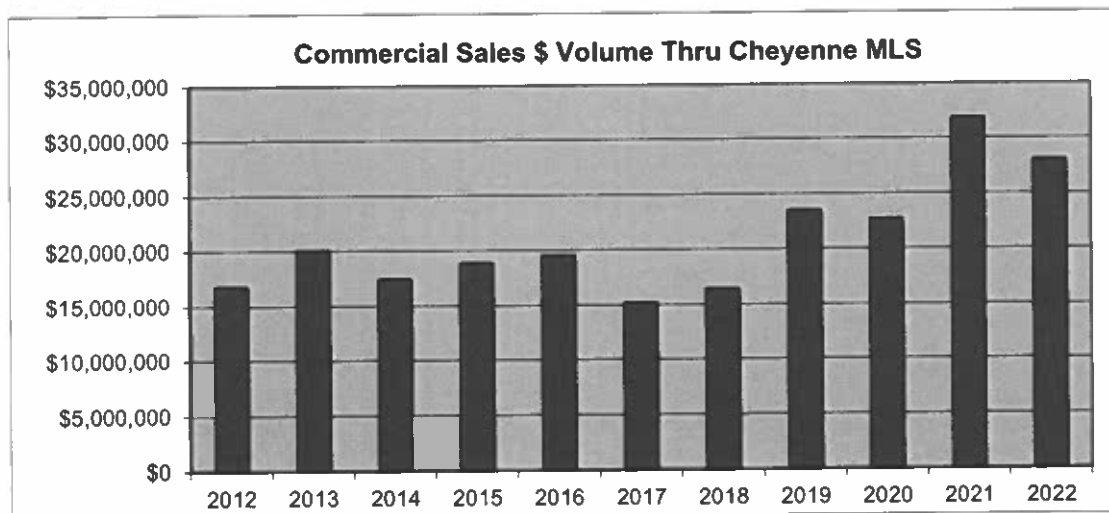
CITY DATA, CONTINUED

COMMERCIAL TRENDS IN CHEYENNE

The Cheyenne MLS typically has about 30 to 50 active commercial and industrial properties (not land) listed for sale over \$50,000 in Laramie County. Over the past two years, Cheyenne MLS shows the following statistics for sold commercial properties over \$50,000 (excluding listings with asking prices of \$0) in Laramie County.

Time Period	07/01/2021 to 06/30/2023
# of Closed Sales	77
Average Sale Price	\$762,742
Median Sale Price	\$600,000
List Price to Sale Price Ratio	95.0%
Average Days on the Market (list to contract)	6.1 months
Median Days on the Market (list to contract)	2.5 months

The Cheyenne commercial market has a strong upward trend. 2020 was strong despite the pandemic. 2021 and 2022 were the strongest years over the past decade.

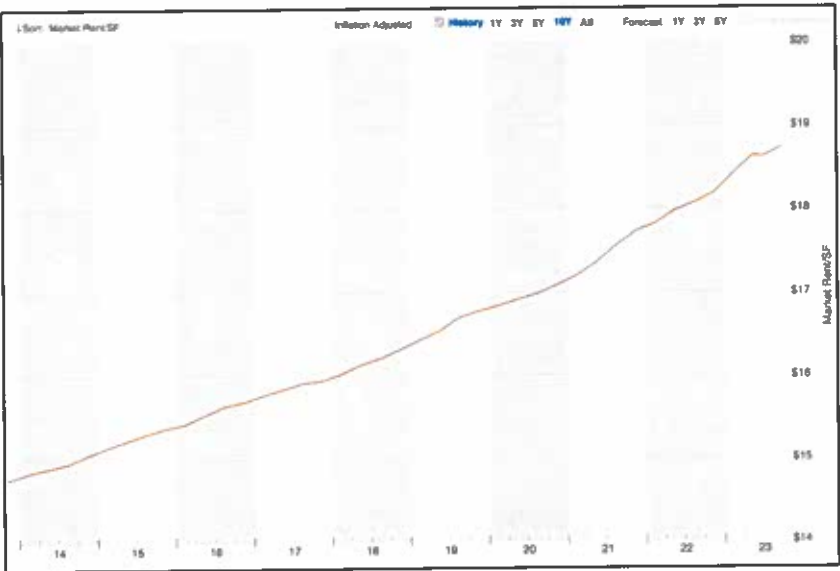


CITY DATA, CONTINUED

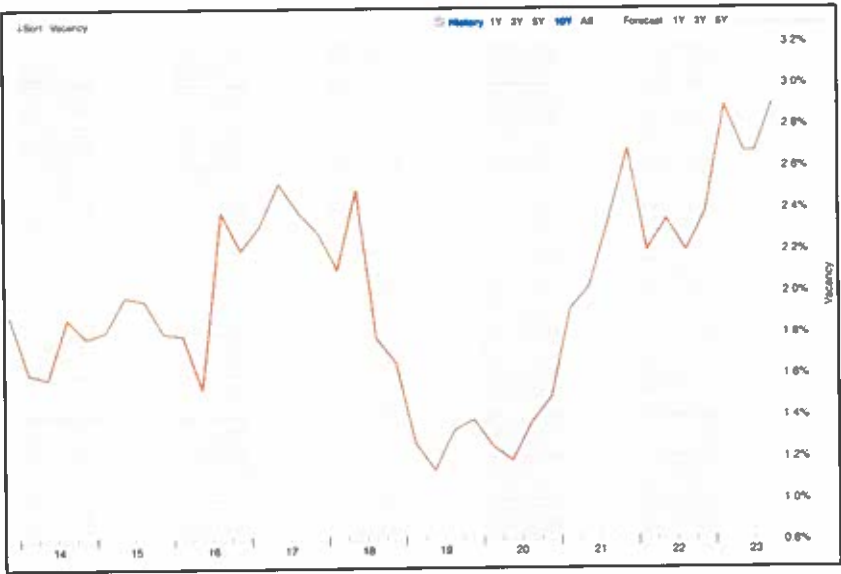
RETAIL TRENDS IN CHEYENNE

The graphs below are based on Costar's survey of 5.6 million square feet of retail space. Retail rents have been steadily increasing. Retail vacancy has been fairly steady and is currently low under 3%.

RETAIL RENT TRENDS PER COSTAR



RETAIL VACANCY TRENDS PER COSTAR

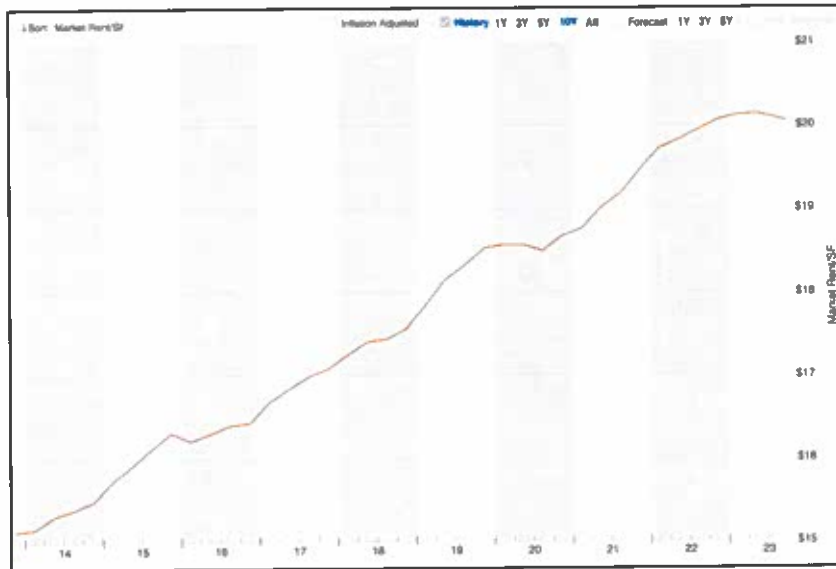


CITY DATA, CONTINUED

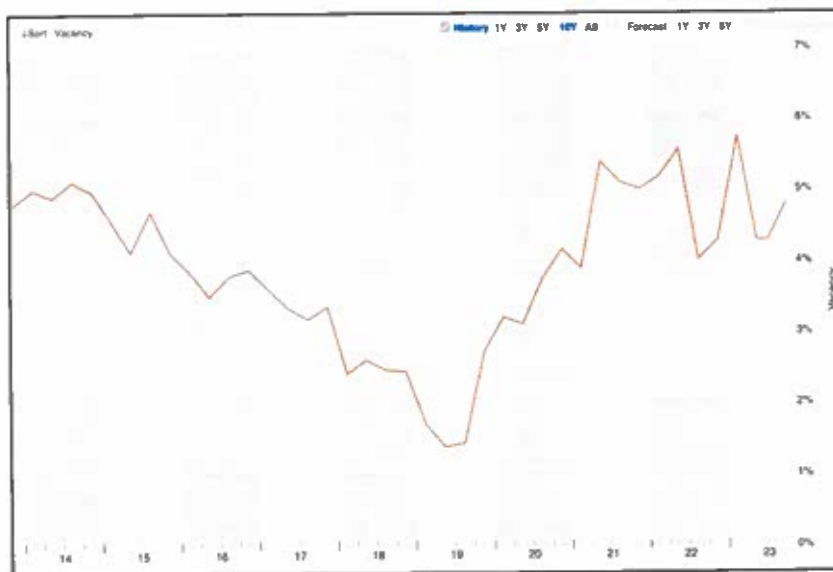
OFFICE TRENDS IN CHEYENNE

The graphs below are based on Costar's survey of 3.4 million square feet of office space. Office rents have been increasing in the past, but have flattened out over the past year. Office vacancy is relatively stable at about 5%.

OFFICE RENT TRENDS PER COSTAR



OFFICE VACANCY TRENDS PER COSTAR

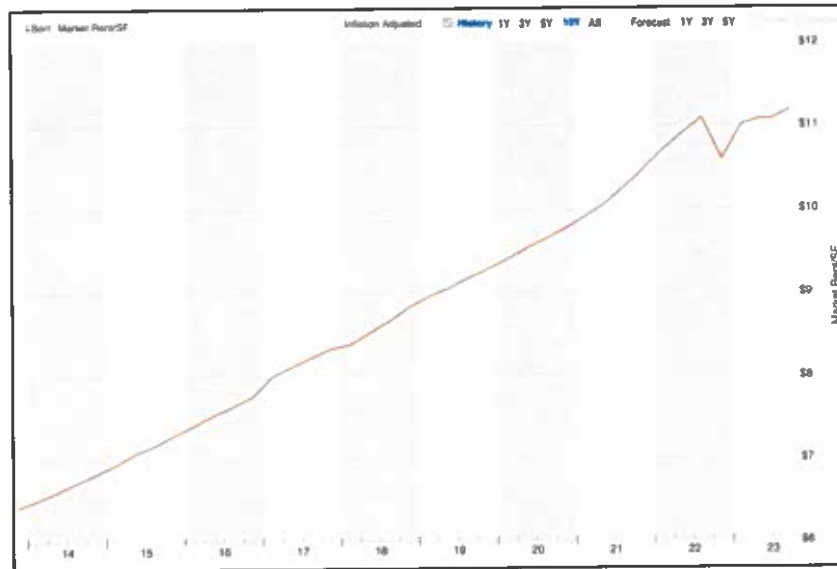


CITY DATA, CONTINUED

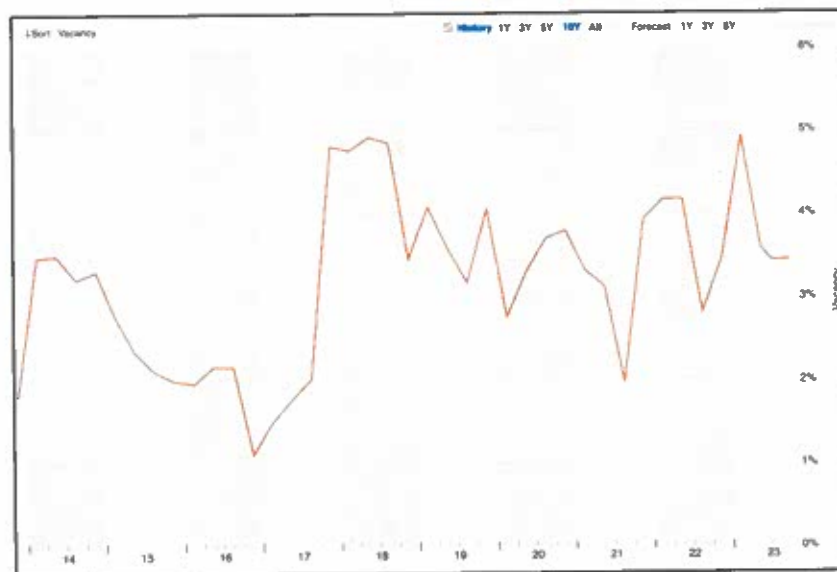
INDUSTRIAL TRENDS IN CHEYENNE

The graphs below are based on Costar's survey of 6.8 million square feet of industrial space in Cheyenne. Costar shows industrial rents flattening out over the past year. Industrial vacancy is currently at 3.4%.

INDUSTRIAL RENT TRENDS PER COSTAR



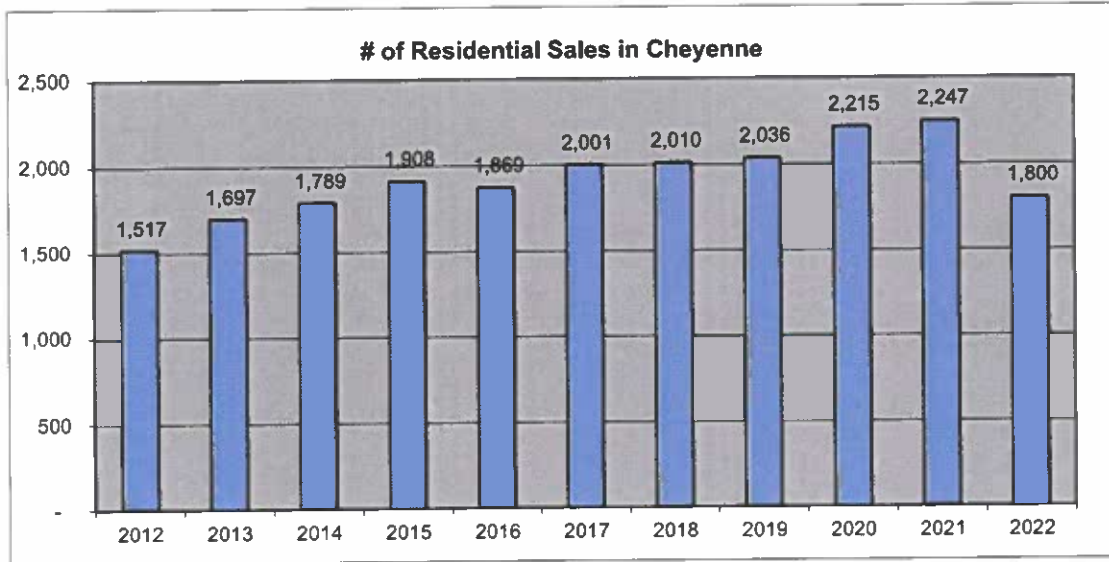
INDUSTRIAL VACANCY TRENDS PER COSTAR



CITY DATA, CONTINUED

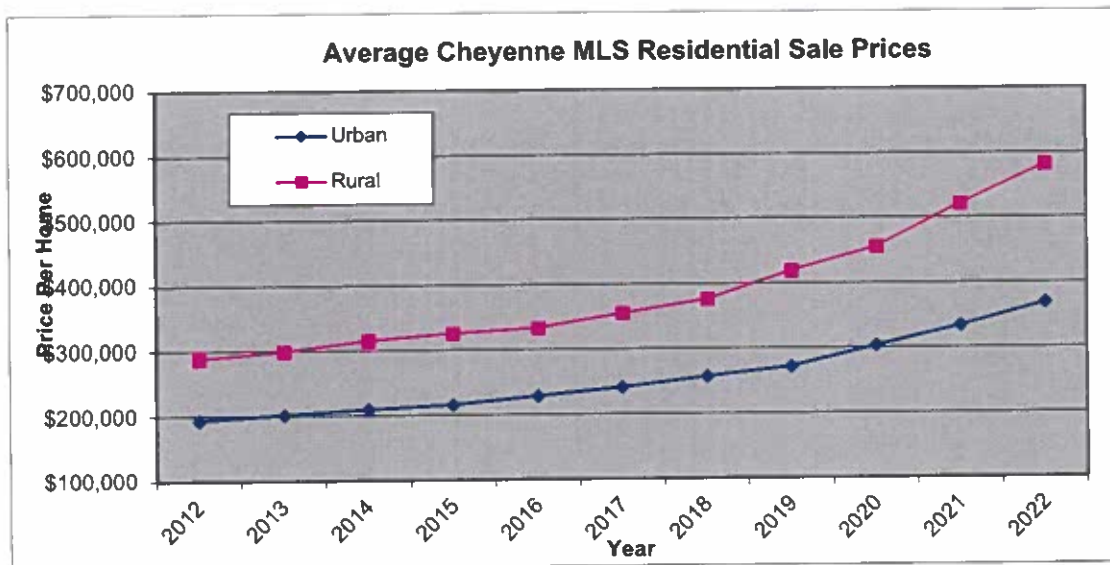
RESIDENTIAL TRENDS IN CHEYENNE

The number of sales is a good indicator of market strength. As shown below, the residential market in Cheyenne has strengthened almost every year over the past decade. 2022 was substantially weaker in terms of number of sales.



Residential Appreciation Trends

The following graph shows that urban residential prices and rural residential prices in Cheyenne are appreciating strongly, averaging about 11% per year over 2020 - 2022.

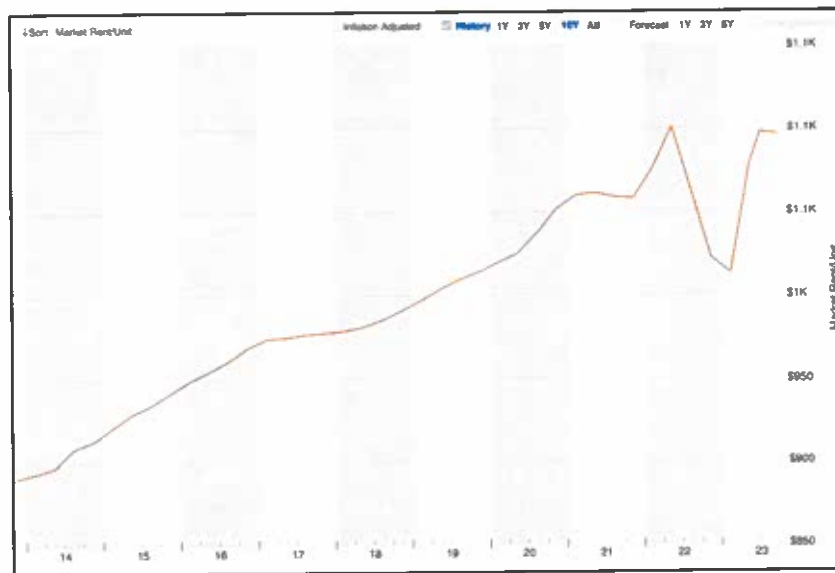


CITY DATA, CONTINUED

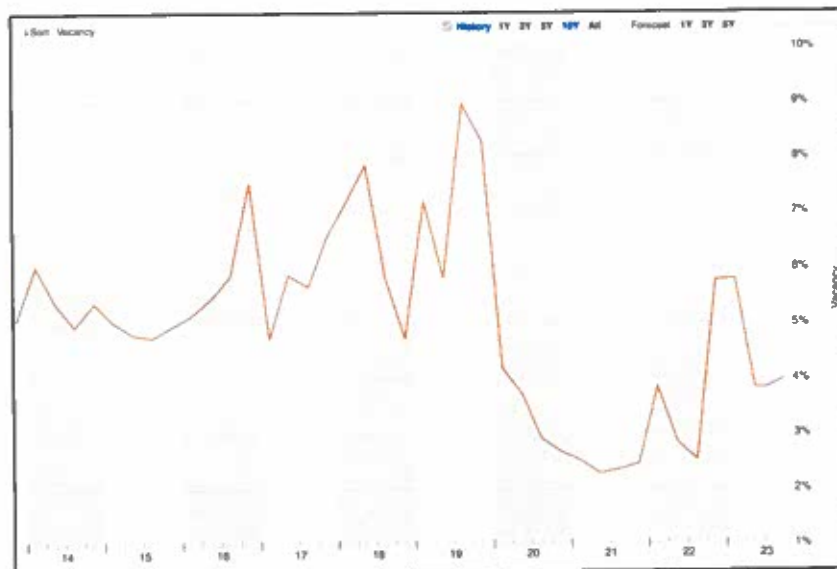
APARTMENT TRENDS IN CHEYENNE

Below is the average rent per unit according to Costar. It shows substantial increases in residential rent over the several years, which is observable in the local market. The drop in rents shown in late 2022 is in error. Apartment vacancy remains very low at about 4%.

APARTMENT RENT TRENDS PER COSTAR



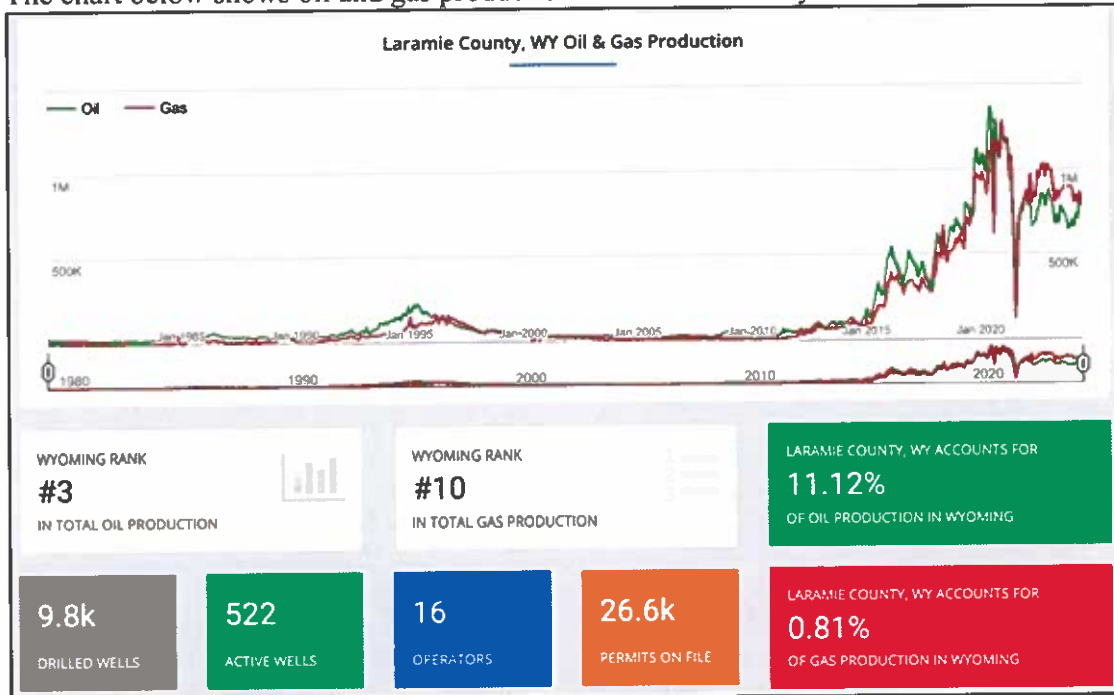
APARTMENT VACANCY TRENDS PER COSTAR



CITY DATA, CONTINUED

ENERGY MARKET

The chart below shows oil and gas production in Laramie County.



<https://www.shalexp.com/wyoming/laramie-county>

The number of active drilling rigs in Wyoming peaked in 2019, fell in spring 2020, but recovered somewhat in mid 2021 and has been steady since.



https://ycharts.com/indicators/wyoming_inland_rotary_rigs

CITY DATA, CONTINUED

ECONOMIC HEADLINES IN CHEYENNE

- Oil Activity. Oil and natural gas activity in the region was low during 2020 and 2021. Energy is beginning to recover during 2022 and 2023 YTD.
- The Air Force plans to replace the Minuteman Missile system throughout the US, a \$140 Billion project. This project will be underway in 2024 and will probably last more than 10 years.
- Warren Air Force Base broke ground in March 2023 on a new helicopter facility and a new weapons storage facility with a total cost of about \$165 million and completion expected in the 3rd quarter of 2025.
- Data Centers. Cheyenne is attractive for data centers because of its proximity to the broadband fiber optics along the I-80 corridor and Dallas to Seattle corridor, sale tax exemptions and cool, dry ambient air, which keeps cooling costs down.
- Microsoft West Data Center. Microsoft built a data center in the North Range Business Park on the west side of Cheyenne that opened in the spring of 2014. Expansions were made in 2015 and 2017 bring the investment in this site to over \$1.5 billion.
- Microsoft East Data Center. Microsoft is under construction with a second data center on the east side of town on 60 acres in the Cheyenne Business Parkway. This facility will reportedly use about 100 megawatts of electricity. This campus should be operational in 2023.
- Microsoft South Data Center. Microsoft is constructing a third data center on 258 acres in the Bison Business Park. This campus should be operational in 2023.
- High Plains Data Center. Another data center (Meta?) will build a 1,427,300 sf facility. This will be the largest building in Wyoming. The High Plains Business Park will total 1,095 acres and will be located East of I-25 and 1 mile south of College Drive. This campus will need substantial new infrastructure.
- Eagle Claw Fishing Tackle bought 60 acres to the Cheyenne Business Parkway and will start construction in 2023. Eagle Claw will relocate their corporate headquarters and manufacturing to this site.
- Cheyenne Frontier Days (CFD) is the largest outdoor rodeo in the world held annually at the end of July. It has been voted best large outdoor rodeo over 15 times and draws over 200,000 visitors each year. CFD was cancelled for 2020 due to Covid-19.
- Cheyenne Airport completed a new \$10-million passenger terminal in 2018. It totals 28,000 SF.
- Swan Ranch announced two large move-ins. Precious Cat Food completed a 150,675 sf facility in 2021 on 33.4 acres to produce cat food and litter. This facility provides 30-40 total jobs.
- Searing Industries manufactures steel tubing. They built a 300,290 sf building in Swan Ranch in 2013. A new building of 38,160 is under construction in 2022-2023.
- Blue Federal Credit Union built a HQ campus at the former Cole Shopping Center. It hosts 170 employees, with room to grow to 400 total. The total project is eight acres and will have a branch, a HQ, open space, and retail space. Blue has thousands of members in WY and CO with plans to expand.
- Sweetgrass Development is a master-planned community southeast of the city. It is in early construction phases and should continue for decades. This project encompasses 2,349 acres. The plan proposes up to 5,000 housing units and nearly 4,000,000 SF of office, retail, hospitality, and recreation buildings.
- Multi-family Construction. There are currently more than 1,800 multi-family units that have been recently completed, are under construction or in the planning phase.
- Suburban SFR Construction. There are currently more than 750 suburban tracts that have been recently completed, are under construction or in the planning phase.
- Solar Farm. A California company QCells has had plans approved in March 2023 for a 150- megawatt solar power facility. The project will be 9 miles south of Cheyenne on US 85 on 1,392 acres. Construction will cost \$164 million with construction begin in mid-2023. The farm will power about 30,000 homes.

OWNERSHIP & PROPERTY HISTORY

The owner as of the date of value was Steven C. Powers and Carol S. Powers, husband and wife.

2022 Transfers

On December 19, 2022 the property was transferred via Trustee's Quitclaim Deed from Carol S. Powers, Trustee of the Roger and Alyce Powers Living Trust dated March 27, 2023 and amended February 11, 2014 quitclaimed the property to Steven C. Powers as recorded in Book 2816 Page 1072.

On December 19, 2022 Steven C. Powers transferred the property via Quitclaim Deed to Steven C. Powers and Carol S. Powers, husband and wife as recorded in Book 2816 Page 1074. A copy of this deed is included on the following page.

These were transfers between related parties. The property has been in the Powers family for over 20 years.

LEGAL DESCRIPTION

Lot One (1), in Block One (1) in Country Homes Addition, being a Subdivision of the Northwest Quarter (NW1/4) of the Northwest Quarter (NW1/4) of Section Seventeen (17), Township Thirteen (13) North, Range Sixty-six (66) West of the Sixth P.M., together with all improvements thereon.

More commonly known as: 503 West College Drive, Cheyenne, Wyoming.

WHEN RECORDED RETURN TO:
Kelly S. Davis, Attorney at Law
Davis, Johnson & Kellat, LLC
1807 Capitol Avenue, Suite 200
Cheyenne, Wyoming 82001



RECP #: 849436
RECORDED 12/19/2022 AT 3:40 PM BK# 2816 PG# 1074
Debra K. Lee, CLERK OF LARAMIE COUNTY, WY PAGE 1 OF 2

QUITCLAIM DEED

KNOW ALL MEN BY THESE PRESENTS,

That STEVEN C. POWERS, a married man, of Cheyenne, Laramie County, Wyoming, Grantor, for the consideration of ten dollars (\$10.00) and other valuable consideration in hand received, hereby conveys, remises, releases, and forever quitclaims to STEVEN C. POWERS and CAROL S. POWERS, husband and wife, Grantees, and their heirs and assigns, all his right, title, and interest as he may or ought to have in the following described real estate situate in the County of Laramie, State of Wyoming, to-wit:

Lot One (1), in Block One (1) in Country Homes Addition, being a Subdivision of the Northwest Quarter (NW1/4) of the Northwest Quarter (NW1/4) of Section Seventeen (17), Township Thirteen (13) North, Range Sixty-six (66) West of the Sixth P.M., together with all improvements thereon.

More commonly known as: 503 West College Drive, Cheyenne, Wyoming.

Hereby releasing and waiving all rights under and by virtue of the homestead exemption laws of the State of Wyoming.

IN WITNESS WHEREOF Grantor hereunto set his hand and seal.

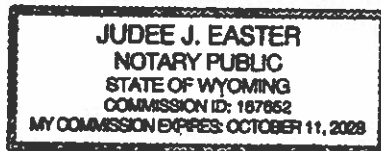
DATED: DEC 19 2022


STEVEN C. POWERS - GRANTOR

STATE OF WYOMING)
COUNTY OF LARAMIE) ss.

The foregoing QUITCLAIM DEED was acknowledged before me by STEVEN
C. POWERS, Grantor, this day DEC 19 2022.

Witness my hand and official seal.




NOTARY PUBLIC
My Commission Expires: 10-11-2028

RECEIVED 12/19/2022 10:41 AM BY CLERK OF LARAMIE COUNTY DEBRA K. LEE
RECP #: 849436
RECORDED 12/19/2022 AT 3:40 PM BK# 2816 PG# 1075
Debra K. Lee, CLERK OF LARAMIE COUNTY, WY PAGE 2 OF 2

DESCRIPTION OF THE SITE

Location: The subject is located at the southwest corner of West College Drive and Pine Avenue.

Size and Shape: According to the county assessor, the site totals 66,211 square feet or 1.52 acres. The site is rectangular in shape.

Access/Exposure: The subject has very good access from West College Drive, which also provides good exposure.

Offsite Improvements: College Drive is an asphalt road with a center turn lane with concrete curb gutter and sidewalk. Pine Avenue is an asphalt road with concrete curb and gutter.

Utilities: The subject site is not located in the city; it is located in Laramie County. Water and sewer is provided by South Cheyenne Water and Sewer District.

**Topography, Drainage
And Soils:**

The subject site is generally level. No soils report was provided, but the load bearing and drainage capabilities are assumed to be adequate. To my knowledge the other developments in the area have not encountered any notable difficulties with regard to the soils.

Flood Zone: The subject does not lie inside a flood zone. It is in a FEMA 550-year flood plain.

Environmental Concerns: There are no known hazardous materials on the site. The presence of potentially hazardous materials may affect the value of the property. The value estimate is predicated on the assumption that there is no contamination on or in the property that would cause a loss in value. No responsibility is assumed for any such conditions, or for any expertise or engineering knowledge required to discover them. The client is urged to retain an expert in this field, if desired.

Zoning Description: The subject property is located in Laramie County outside of the Cheyenne city limits and it is zoned MU; Mixed Use. Excerpts from the MU zoning code are included below.

DESCRIPTION OF THE SITE, CONTINUED

4-2-111 DISTRICT MU - MIXED USE

Mixed use developing areas are to be used for a mix of residential and commercial uses. This district is intended to encourage rehabilitation and reuse of existing buildings in the established areas of the community.

a. Uses by Right

- i. Single family, townhouse, duplex residential
- ii. Mixed use residential developments
- iii. Family child care homes
- iv. Home occupations
- v. Churches, temples or other places of worship
- vi. Offices
- vii. Multi-family residential
- viii. The retail sale of goods when the use is proposed in a building and the sale and storage of equipment and supplies are conducted within the building.
- ix. Child care facilities
- x. Assisted living facilities

b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

- i. Food service facilities
- ii. Bars, cocktail lounges and liquor stores
- iii. Other uses similar to those permitted in this district
- iv. Entertainment facilities
- v. Outdoor storage in association with an approved use

Amended January 1, 2020
Page | 212

DESCRIPTION OF THE SITE, CONTINUED

The Laramie County Land Use Regulations

- c. Minimum Property Area
 - i. Single-family: 6,000 square feet per unit
 - ii. Townhouse/duplex: 3,000 square feet per unit
 - iii. Multi-family: 1,860 square feet per unit
- d. Maximum Building Coverage
 - i. Single-family: 60 percent of property area
 - ii. Townhouse and duplexes: 50 percent of property area
 - iii. Multi-family building and parking area: seventy (70) percent of property area
 - iv. Total building and parking areas shall not exceed seventy five (75) percent of the total property area for nonresidential uses.
 - v. Best Management Practices for storm water management and open space design are encouraged. Characteristics such as community open space, pocket parks and connectivity to regional trails, including the Greater Cheyenne Greenway, are encouraged.
- e. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.
- f. Height
 - i. The maximum building height shall be thirty-five (35) feet.
 - ii. Board Approval is required for buildings over thirty-five (35) feet in height.
- g. Site Design

All areas, including areas from right-of-way line to property line that are not covered by buildings, sidewalks, and parking area, shall be landscaped.
- h. Parking

Parking requirements shall be in conformance with these regulations.
- i. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

Screening is required in conformance with site plan requirements for outdoor storage areas of items and equipment which are not for immediate use, sale or lease. Screening for outdoor storage areas shall be located behind the setback line.

DESCRIPTION OF THE SITE, CONTINUED

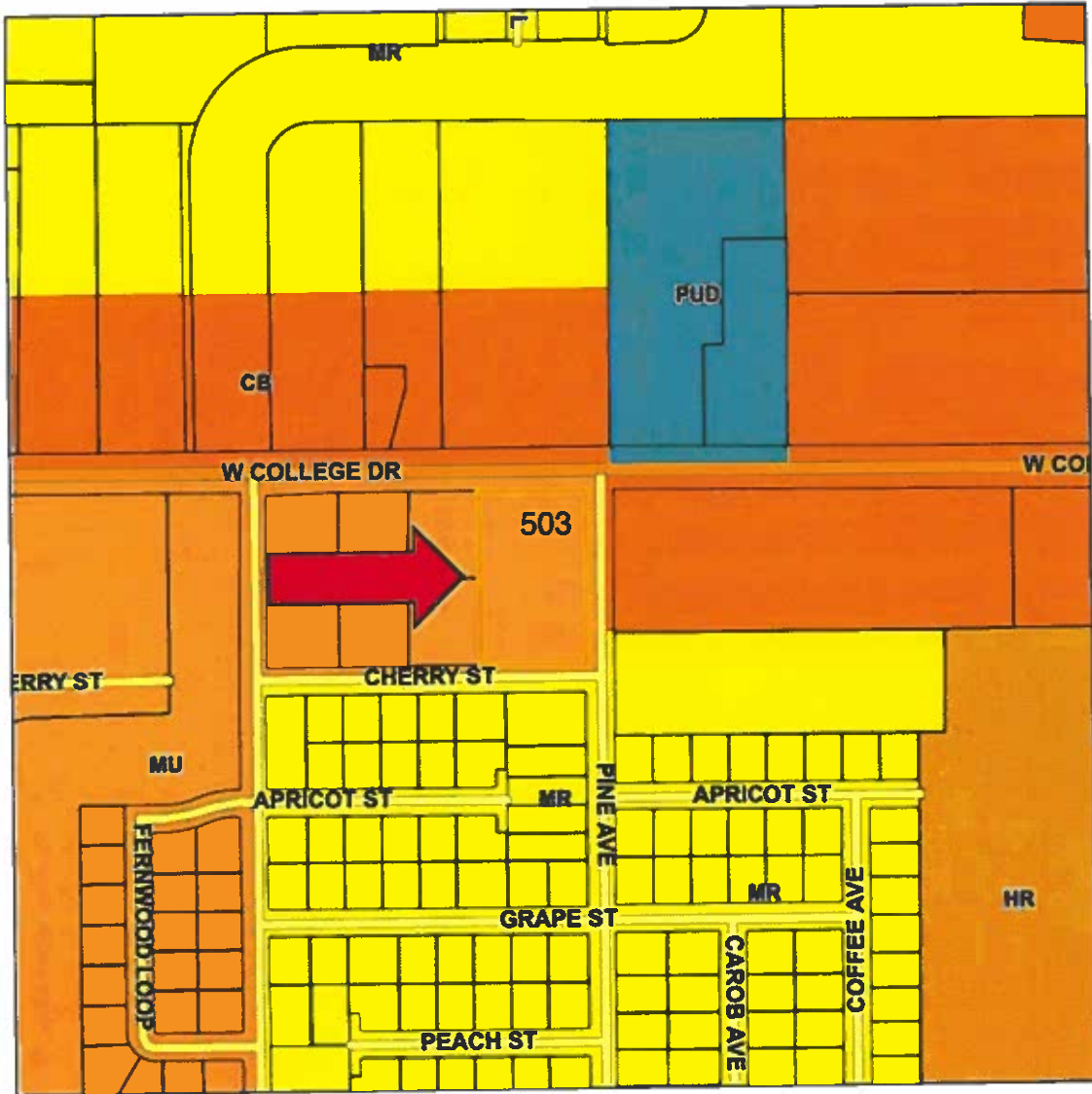
Improvements:

The property has the following improvements.

- A home of 1,020 sf built in 1940.
- A detached garage of 900 sf built in 1960.
- A storage shed of 660 sf built in 1989.
- An RV-type, pole frame storage building of 512 sf built in 2010.
- Mature trees on the property.
- Fencing

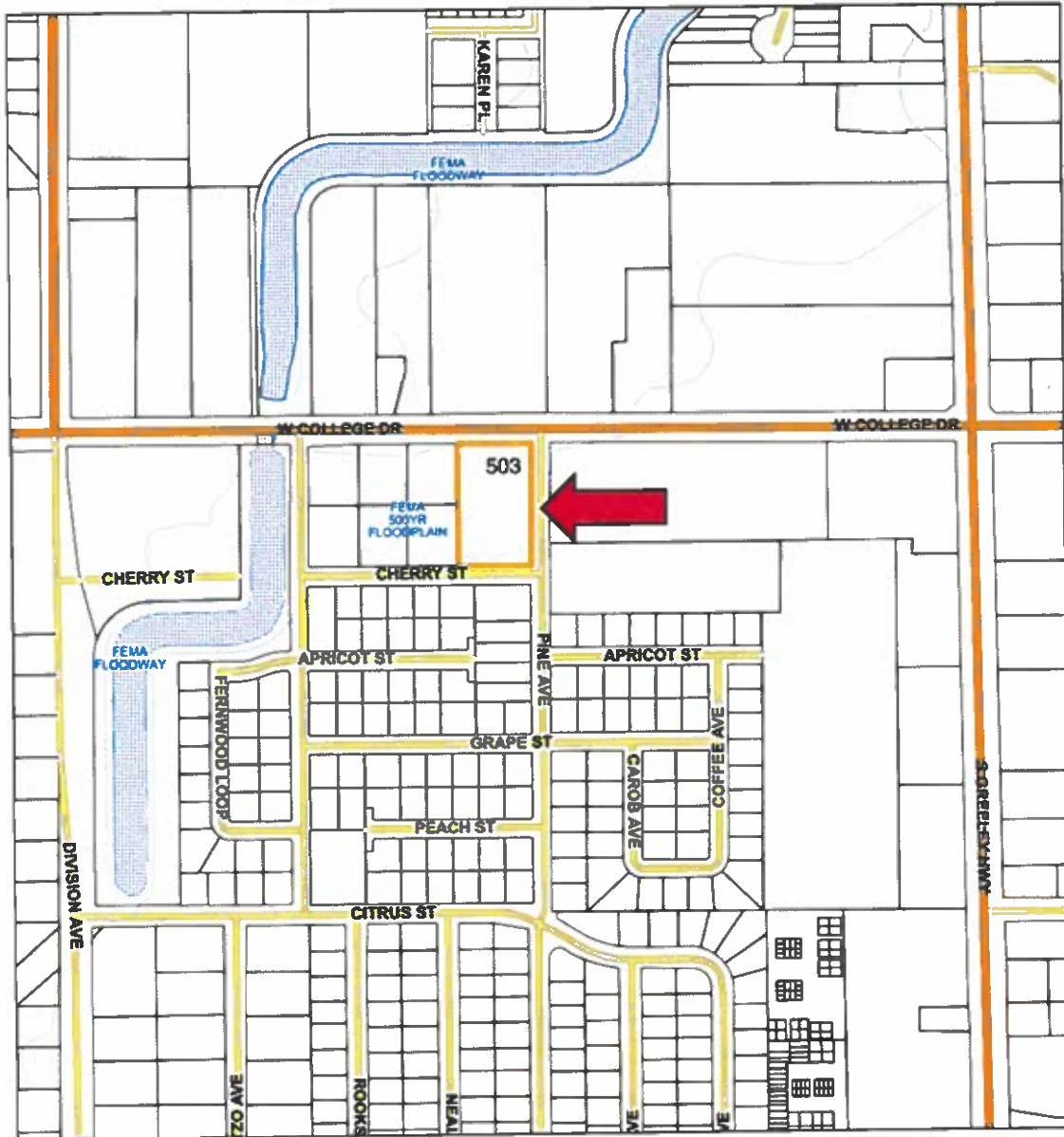
DESCRIPTION OF THE SITE, CONTINUED

ZONING MAP



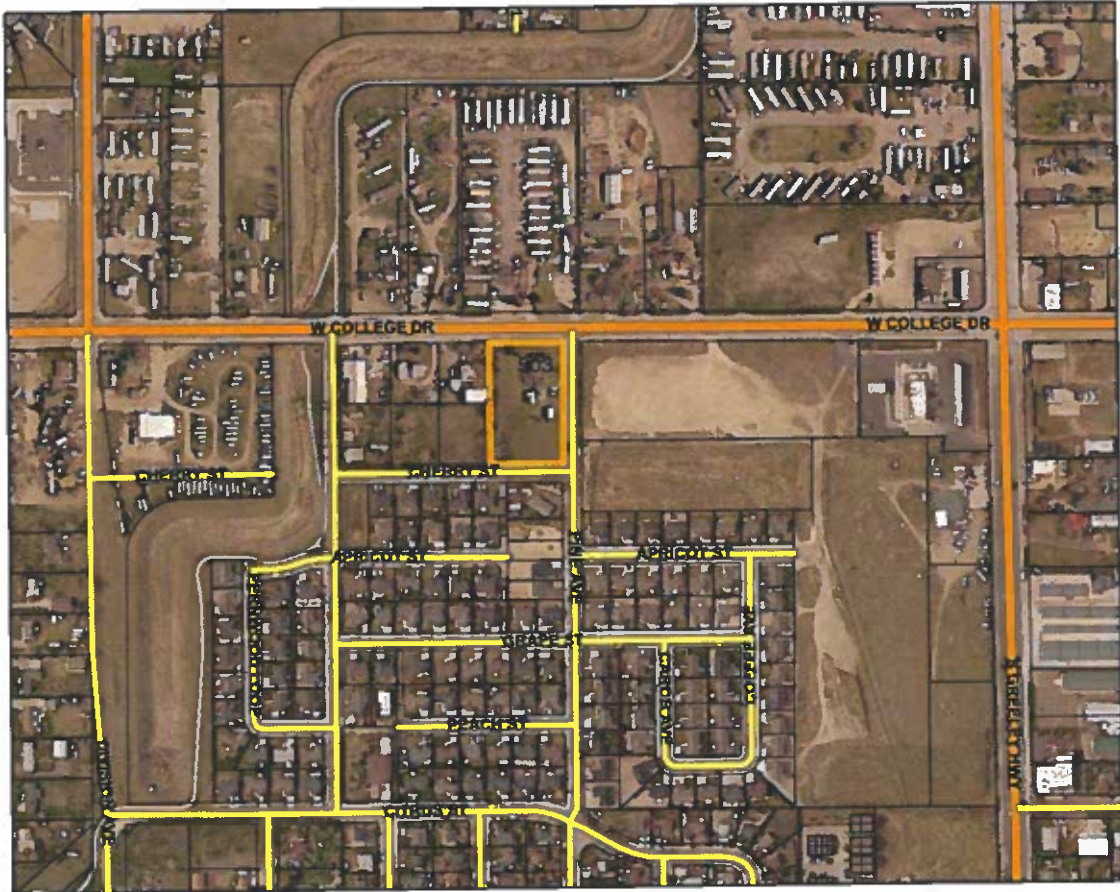
DESCRIPTION OF THE SITE, CONTINUED

FLOOD ZONE MAP



DESCRIPTION OF THE SITE, CONTINUED

LOCATION MAP



DESCRIPTION OF THE SITE, CONTINUED

LOCATION MAP



DESCRIPTION OF THE SITE, CONTINUED

SUBJECT PHOTOS Photos Taken on July 20, 2023

Looking southwest.



Looking south along Pine Street.



Looking west along College Dr.



Looking southeast.



Looking east along College Drive.



Trees along west boundary.



DESCRIPTION OF THE SITE, CONTINUED

SUBJECT PHOTOS Photos Taken on July 20, 2023

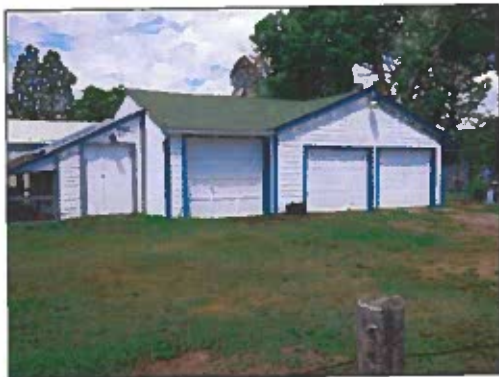
Residence.



Residence.



Detached garage.



Storage.



RV storage.



Looking northwest.



HIGHEST AND BEST USE

The highest and best use analysis is the fulcrum of the appraisal report. The conclusions of the highest and best use analysis determine which methods of valuation are considered appropriate and aid in the selection of comparable market data that can be used to value the property under appraisal. The highest and best use of a property provides the framework for the procedures used to estimate market value.

Highest and Best Use

The reasonably probable use of property that results in the highest value. The four criteria that the highest and best use must meet are legal permissibility, physical possibility, financial feasibility, and maximum productivity. Source: Appraisal Institute, *The Dictionary of Real Estate Appraisal*, 7th ed. (Chicago: Appraisal Institute, 2022).

Market forces create value. It is important to note that the highest and best use of a property is not determined through subjective analysis by a property owner, a developer, or an appraiser. The highest and best use of a particular property is shaped by the competitive forces of the market in which the property is located. Therefore, the highest and best use of a property is an interpretation of the market forces that affect that property. The use that maximizes value represents the highest and best use.

The four criteria of legal permissibility, physical possibility, financial feasibility, and maximal productivity will be applied to the subject property. The criteria are generally considered in the order they have been listed; for it makes no difference that a use may be financially feasible if it is physically impossible or legally prohibited. The four criteria are discussed in further detail in the following paragraphs.

HIGHEST AND BEST USE

Legal Permissibility

This criterion determines which uses are legally permissible. Legal uses are controlled by such things as private restrictions, zoning ordinances, building codes, and/or environmental regulations. Private restrictions may prohibit certain uses or specify building requirements such as setbacks, heights, or materials. Zoning ordinances are restrictions on property use imposed by governmental agencies such as cities or counties. Building codes may impose restrictions on construction that result in higher or lower costs than normal for the area. Environmental regulations are typically governmental rules pertaining to clean air, clean water, and/or wetlands.

The subject property is located in the county and is zoned Mixed Use. Uses by right include residential, multi-family residential and offices. Uses requiring board approval include food service facilities, bars, entertainment facilities and outdoor storage. The current zoning is relatively flexible. The MU zoning is appropriate to the site and it is consistent with zoning trends in the area.

HIGHEST AND BEST USE, CONTINUED

Physical Possibility

Physical possibility refers to the physical attributes of the property that would affect its suitability for a particular use. It takes into account such items as size and shape; area; terrain, topography and soils; accessibility; and/or the risk of natural disasters. Size and shape of the property affects its utility and may make the property particularly suitable or totally unsuitable for a particular use. Analysis of the area considers not only the geographic neighborhood, but also considers the availability and proximity of public utilities. Topography and sub-soil conditions may increase difficulty of development, increase its cost, or even prohibit it. Accessibility refers to the adequacy of access for the proposed development. Risk of natural disasters is typically identified in the form of flood or earthquake zones, which may impose costly restrictions or even prevent building.

The subject parcel is 66,211 sf or 1.52 acres and could support many different types of uses in conformance with the subject's MU zoning.

Financial Feasibility and Maximum Productivity

Many potential uses are eliminated with the test of legal permissibility and physical possibility. Of those uses that are left to consider, each can be evaluated as to whether or not a proposed use is likely to produce a return equal to or greater than the amount needed to cover operating expenses, financial obligations, capital amortization and satisfy the required rate of return on the investment. The required rate of return on a real estate investment must reflect the risk associated with the project when compared with other investment alternatives. Of those uses found to be legally permissible, physically possible and financially feasible, the maximally productive use is that which produces the highest rate of return on the capital invested.

The home is older, built in 1940, and relatively small at 1,020 sf. The largest garage is built in 1960. Evaluation of the property indicates that the value of the land for development exceeds the value of the property as improved as a residence with outbuildings. In my opinion, the maximally productive use of the property is for interim use as a residence until it is developed to urban density in conformance with the MU zoning.

The subject is at the southwest corner of West College Drive and Pine Avenue. There is a Maverick convenience store 1,000 feet to the east at the intersection with S. Greeley Highway. However, most of the commercial development along West College Drive west of S Greeley Highway has been limited to mobile home parks, RV parks, self-storage and similar uses. There may be commercial development along College Drive in the future, but so far such development has been slow in coming. The subject's location is appealing for multi-family development.

Conclusion of Highest and Best Use

In my opinion, the highest and best use of the property is for interim use as a residence until it is developed to urban density in conformance with the MU zoning.

SALES COMPARISON APPROACH

The Sales Comparison Approach is a comparative analysis between the subject property and other similar properties that have sold or are listed for sale. The sales comparison approach uses direct market evidence in the form of sales, listings, or offers for properties that are similar to the subject. The primary premise of the sales comparison approach is that the value of the property under appraisal is related to the prices of comparable, competitive properties. The principle of substitution holds that the value of a property tends to be set by the price that would be paid to acquire a substitute property of similar utility and desirability within a reasonable amount of time. Thus, the market value of a property is directly influenced by sales or listings of competitive properties as well as the cost to construct a similar property.

The sales comparison approach is applicable to all property types when there are sufficient, recent, reliable transactions to indicate value patterns. Market research is conducted and the most comparable transactions are selected. The selected sales, listings, and/or offers are compared with the property under appraisal, and are adjusted for differences. Buyers and sellers in the local market typically use the price per square foot unit of comparison when valuing commercial buildings. On the following page is a chart entitled "Comparable Improved Sales".

MLS data sheets have been included in the Addenda for all sales that were in the MLS.

Adjustments have been considered for various characteristics including the following:

- Location
- Size
- Topography
- Demolition
- Offsite Ponding Basin

SALES COMPARISON APPROACH, CONTINUED

COMPARABLE LAND SALES

Sale #	Location	Sale Date	Sale Price	Size (SF)	Price Per SF	Comments
1	4120 Greenway St Dollar General Fronting Lincolnway	6/16/21	\$399,500	49,223 1.13	\$8.12	Sold by FIB, Developed to a Dollar General. Zoned MUB. MLS #79985
2	NS of Pershing Blvd East of Maverik	7/9/21	\$462,000	55,321 1.27	\$8.35	East of Maverik, zoned MUB Cheyenne Housing new office and parking. MLS #79281. 300 days on market.
3	1110 S Greeley Hwy MLS 80522	4/22/21	\$230,000 plus demo	33,541 0.77	\$6.86 \$9.03	For a new dental office. Demolition totals \$72,830 = \$9.03 per sf.
4	ES of Warren Ave. NS of 3rd St alignment MLS #88754	2/2/23	\$330,000	34,848	\$9.47	Listing agent buys and seller carries 100%. Buyer intends to build 20 townhomes.
5	SS of College Dr East of Pine Ave	Asking	\$3,200,000	322,344 7.40	\$9.93	Listed on 7/14/23 with Red Diamond Realty. May be split into smaller lots. Has interest in ponding basin.
6	1800 S Greeley Hwy	Pending	\$580,000 plus demo	57,064 1.31	\$10.16 \$10.51	Purchase price is \$580,000 per Kevin Perry. Demolition estimated at \$20k Has an interest in an existing drainage pond.
7	3406 E Pershing MS 86109	7/14/23	\$1,150,000	83,200 1.91	\$13.82	NEC of Ridge and Pershing. Purchased for commercial development.
8	1600 W Lincoln way MLS 84294	6/13/23	\$1,467,135	100,188 2.30	\$14.64	Probable use is a hotel.
9	Paul Smith Way MLS 90059	Pending	\$301,710 List Price	20,114 0.46	\$15.00	Probable use is a restaurant.

SALES COMPARISON APPROACH, CONTINUED

Land Sale 1



Land Sale 2



SALES COMPARISON APPROACH, CONTINUED

Land Sale 3

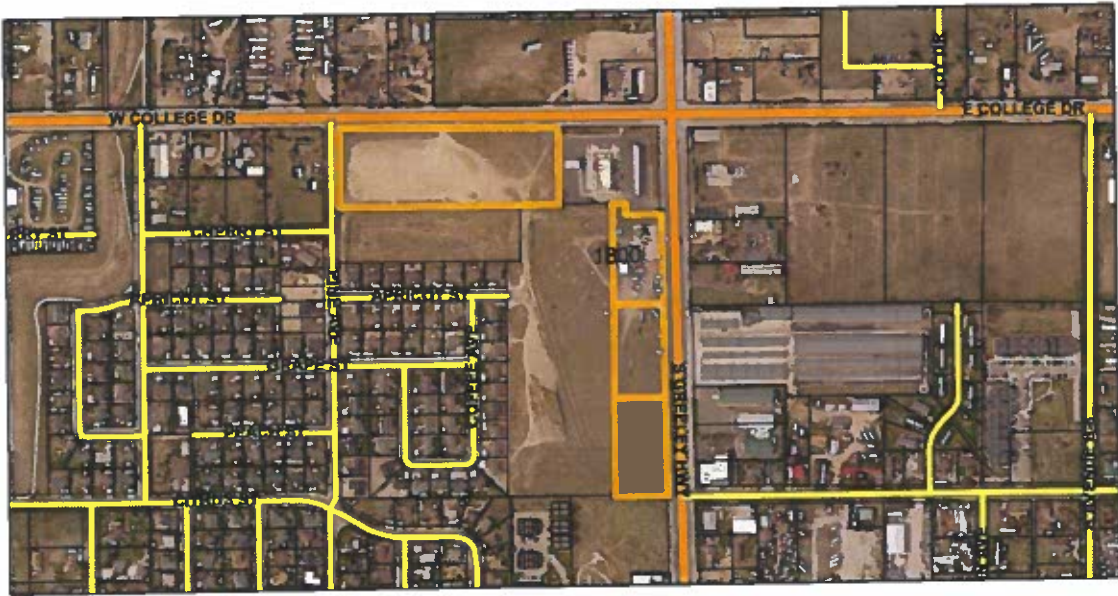


Land Sale 4

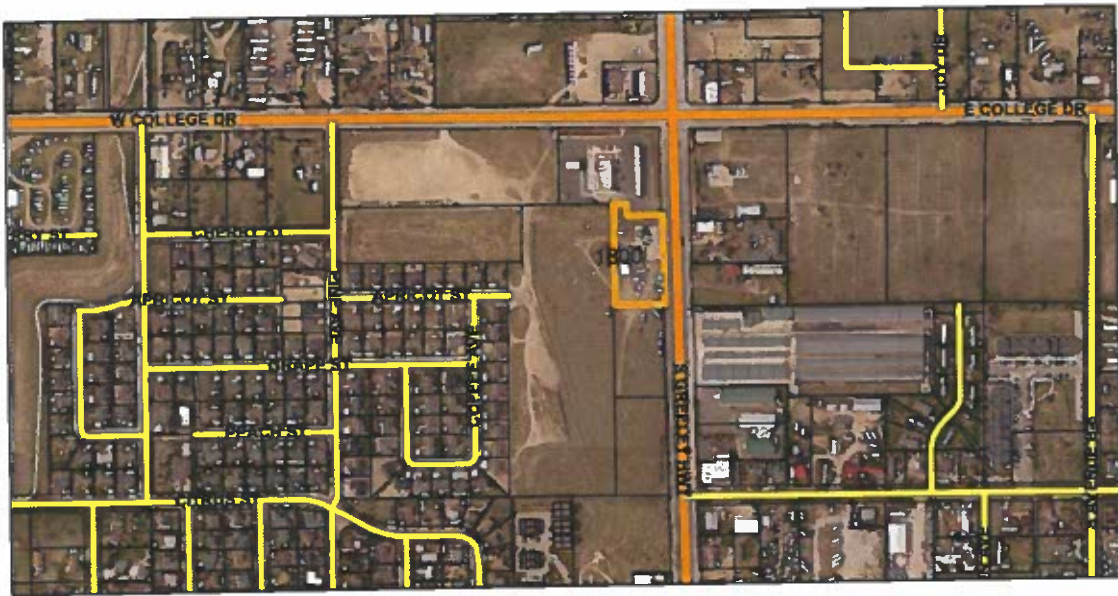


SALES COMPARISON APPROACH, CONTINUED

Land Sale 5



Land Sale 6



SALES COMPARISON APPROACH, CONTINUED

Land Sale 7



Land Sale 8



SALES COMPARISON APPROACH, CONTINUED

Land Sale 9



SALES COMPARISON APPROACH, CONTINUED

Discussion of Adjustments

An adjustment grid has been used to quantify the differences between the comparable sales and the subject property. On the following page is a chart that summarizes the adjustments made to these comparable sales. The adjustment process begins with the unadjusted sale price of the comparable sales. The sale price is then typically adjusted for property rights conveyed. Succeeding adjustments are applied to each previously adjusted price for financing, sale conditions, and market conditions. It is not necessary to apply the adjustments for location or physical characteristics in any sequence. Therefore, these adjustments have been grouped together. When considering potential adjustments, comparable sales are traditionally adjusted to the subject property. Thus, a downward adjustment means that the comparable is superior to the subject in a particular aspect and the comparable sale, on a price per square foot basis, requires a downward adjustment for this factor to arrive at a value indication for the subject property.

Each of the adjustment categories which are pertinent to the subject property are discussed as follows:

Property Rights Conveyed: The first adjustment that is made to each sale is for the property rights conveyed. This adjustment takes into consideration differences in the legal estate (typically lease rates and terms) between the subject and the comparable sales. No adjustments have been made.

Financing: The definition of market value used in this appraisal states that the value is to be in terms equivalent to cash. In effect, this means that each sale must be adjusted to reflect a purchase price in terms of cash or its equivalent. For the purposes of this appraisal, cash equivalency means that each sale has been adjusted to reflect financing rates, terms, or conditions that were readily available in the open market at the time each sale occurred.

Sale 4 is for a half block on the east side of Warren Avenue at 3rd Street. The listing agent purchased the property and the seller carried the entire purchase price. This sale has been adjusted downward 5% for favorable financing terms.

SALES COMPARISON APPROACH, CONTINUED

Conditions of Sale:

A conditions of sale adjustment is made for any unusual motivation or duress of the sale participants or unusual conditions affecting the sale price.

Comparable 6 is pending at \$580,000. The pending sale price is known, so no adjustment is needed.

Comparable 5 is an asking price.

Comparable 9 is pending, but only the asking price is known.

The table below shows commercial land sales in Laramie County through the MLS over the past 2 years. The total sale price divided by the total list price equates to a sale price to list price ratio of 87.8%. Based on this information, list prices have been adjusted downward 12% to reflect that sale prices are typically below the list prices.

Home		Lots/Land			
Criteria	Map Search	Default MLS Defined Spreadsheet (39)		+ New Search	
✓ Checked	📍 All	✉ Email	🔗 Share	💾 Save	🖨 Print
📄 Export	⚙ Customize	🔗 Connections	⚡ Actions	More	
TOTAL		HIGH	LOW	AVG	MED
LISTING COUNT: 39		DAYS ON MARKET: 4634		0	488
				112	
		HIGH	LOW	AVERAGE	MEDIAN
LIST PRICE:		\$1,700,000	\$75,000	\$564,150	\$435,600
SOLD PRICE:		\$1,500,000	\$45,000	\$495,236	\$410,000
					TOTAL PRICE
					\$22,001,873
					\$19,314,230

SALES COMPARISON APPROACH, CONTINUED

Market Conditions: This paragraph addresses the adjustment for market conditions/time. The sales have occurred between April 2021 and present.

CPI Inflation Calculator

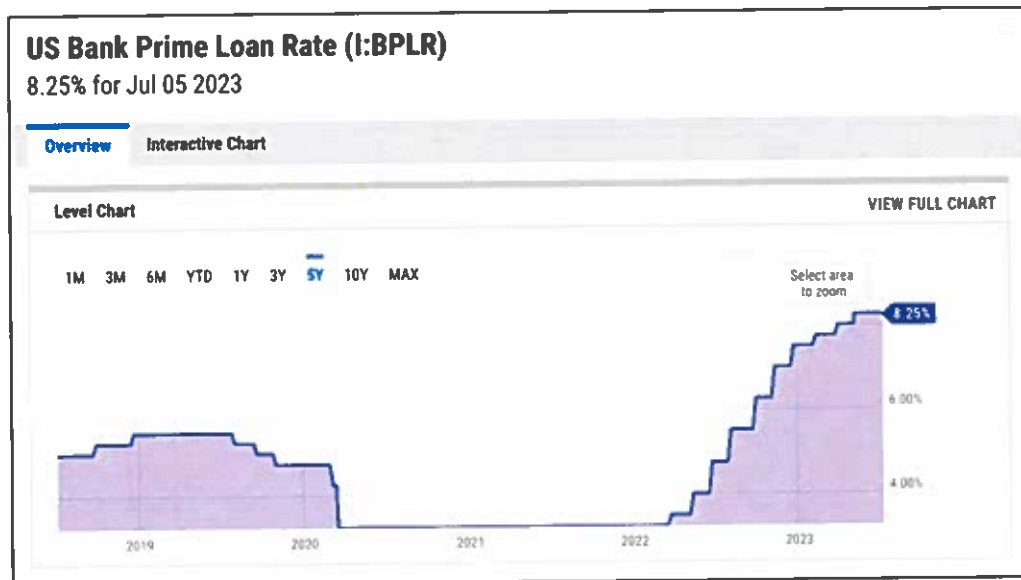
\$

in

has the same buying power as

in

- As shown on the foregoing chart, inflation has been about 14% over this time frame, or about 6% per year.
- Interest rates have increased notably since early 2022 as shown below. Rising interest rates are a notable downward factor on the value of development land.



- Demand for vacant land increased dramatically during 2021. However, demand for vacant land has dropped notably since summer of 2022.
- I have opted to adjust the sales from 2021 upward 10%.
- The sales from 2023 require no adjustment for time.

SALES COMPARISON APPROACH, CONTINUED

Location: The subject is at the southwest corner of West College Drive and Pine Avenue. There is a Maverick convenience store 1,000 feet to the east at the intersection with S. Greeley Highway. However, most of the commercial development along West College Drive west of S Greeley Highway has been limited to mobile home parks, RV parks, self-storage and similar uses. There will be commercial development along College Drive in the future.

Sale 1 is located at the northwest corner of Highway 30 and Greenway Street at 4120 Greenway Street. This location is similar to the subject in commercial potential. No adjustment has been made.

Sale 2 is located on the north side of Pershing Boulevard, just east of the Maverick at the corner of College Drive. This site was purchased for parking for a new office on the adjoining site to the north for the Cheyenne Housing Authority. This is not a corner location, so it has been adjusted upward 10%.

Sale 3 is on the west side of S Greeley Highway, north of Prosser Road at 1110 S Greeley Highway. South Greeley Highway is more developed with commercial development than the immediate area near the subject property. However, Sale 3 lacks the subject's corner appeal. No adjustment has been made.

Sale 4 is on the east side of Warren Avenue and on the north side of the 3rd Street alignment. This location is inferior to the subject in commercial appeal. This sale has been adjusted upward 20% for inferior commercial access.

Listing 5 is across the street to the east of the subject. Lot 1 is 4.60 acres that front College Drive. Lots 4 and 5 front S. Greeley Highway. These lots are similar to the subject, so no location adjustment has been made.

Pending Sale 6 is located on the south side of the Maverik gas station at 1800 S Greeley Highway. This sale has superior exposure on S Greeley Highway, but lacks the subject's corner appeal. No adjustment has been made.

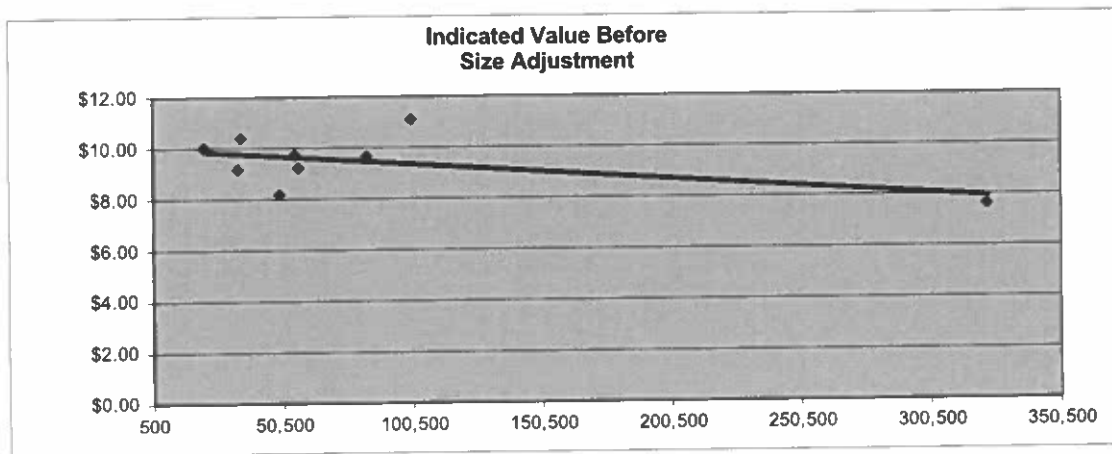
Sale 7 is located at the northeast corner of E Pershing Boulevard and Ridge Road. This location is substantially superior to the subject property. Sale 7 has been adjusted downward 30% for location.

Sale 8 is located at 1600 W Lincolnway at the location of the former Hitching Post. In my opinion, this location is superior to the subject. Sale 8 has been adjusted downward 25% for location.

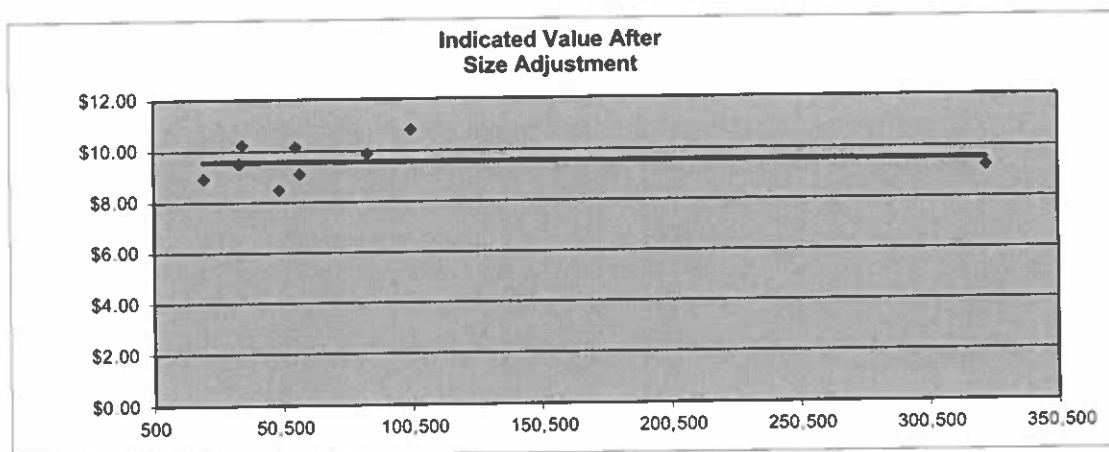
SALES COMPARISON APPROACH, CONTINUED

Sale 9 is also located at about 1600 W Lincolnway at the location of the former Hitching Post. This pending sale has been adjusted downward 25% for location.

Parcel Size: The subject is 66,211 sf or 1.52 acres. Parcel size typically has a measurable effect on price per square foot. All other things being equal, smaller sites typically sell for higher prices on a per square foot basis. As shown on the graph below which reflects indicated values after all other adjustments have been made, but prior to any adjustment for size. An adjustment is warranted.



I have adjusted for differences in site size by multiplying the percentage difference in size by a factor of 5% of the size difference. As illustrated on the graph below, which reflects indicated values after all adjustments have been made, this adjustment is appropriate for the comparable sales used in this analysis.



SALES COMPARISON APPROACH, CONTINUED

Topography: The subject is relatively level as are most of the comparables. Sale 2 has a modest slope downward to the north and has been adjusted upward 5%.

Demolition: The subject has improvements that will require demolition. Demolition has been estimated at about 4% of the subject's estimated land value. Sales that required demolition have been adjusted downward 4%.

Sale 5 required demolition of \$72,830, which equated to about 32% ($\$72,830 / \$230,000$) of the purchase price. Sale 5 has been adjusted upward 28% for demolition.

Offsite Ponding Basin: Comparables 5 and 6 share in an offsite ponding basin. The ponding basin serves the following properties.

Homes to the south	13.63 acres
Lot 1, Block 1, Country Homes, 6th	4.60 acres
Lot 2	8.11 acres
Lot 3	1.31 acres
Lot 4	1.35 acres
Lot 5	<u>1.48 acres</u>
Total	30.48 acres

The ponding basin is Country Homes 5th Filing, Block 1, Lot 1 totaling 2.79 acres. Thus, the ponding basin increases the land area by about 9%. Plus, the basin has already been constructed.

Comparables 5 and 6 have been adjusted downward 10% for their ponding basin amenity.



SALES COMPARISON APPROACH, CONTINUED

ADJUSTMENT WORKSHEET

	1	2	3	4	5	6	7	8	9
Subject	4120 Greenway St. Dollar General	NS of Pershing East of College	1110 S Greeley Hwy	ES of Warren at 3rd Street	SS of College at Pine Street	1800 S Greeley	3406 E Pershing Blvd	1600 W Lincoln way	Paul Smith Way
Due of Sale	6-16-21	7-9-21	4-22-21	2-2-23	Asking	Pending	7-14-23	6-13-23	Pending
Physical Characteristics									
Site Size SF	49,223	55,321	33,541	34,848	312,344	57,064	83,200	100,188	20,114
Site Size Acres	1.13	1.27	0.77	0.80	7.40	1.31	1.91	2.30	0.46
% Difference in Site Size	-26%	-16%	-49%	-47%	387%	-14%	26%	51%	-70%
Unadjusted Sale Price	\$399,500	\$462,000	\$230,000	\$330,000	\$1,200,000	\$580,000	\$1,150,000	\$1,467,135	\$301,710
Property Rights Adjustment	0.0%	0.0%	0.0%	0.0%	0.0%	0.0%	0.0%	0.0%	0.0%
Sale Price Adjusted For Property Rights	\$399,500	\$462,000	\$230,000	\$330,000	\$1,200,000	\$580,000	\$1,150,000	\$1,467,135	\$301,710
Financing Adjustment	0.0%	0.0%	0.0%	-5.0%	0.0%	0.0%	0.0%	0.0%	0.0%
Sale Price Further Adjusted For Financing	\$399,500	\$462,000	\$230,000	\$313,500	\$1,200,000	\$580,000	\$1,150,000	\$1,467,135	\$301,710
Conditions Of Sale Adjustment	0.0%	0.0%	0.0%	0.0%	-12.0%	0.0%	0.0%	0.0%	-12.0%
Further Adjusted For Conditions of Sale	\$399,500	\$462,000	\$230,000	\$313,500	\$2,816,000	\$580,000	\$1,150,000	\$1,467,135	\$265,505
Market Conditions	10.0%	10.0%	10.0%	0.0%	0.0%	0.0%	0.0%	0.0%	0.0%
Further Adjusted For Market Conditions	\$439,450	\$508,200	\$253,000	\$313,500	\$2,816,000	\$580,000	\$1,150,000	\$1,467,135	\$265,505
Adjusted Sale Price	\$439,450	\$508,200	\$253,000	\$313,500	\$2,816,000	\$580,000	\$1,150,000	\$1,467,135	\$265,505
Adjusted Price Per SF	\$8.93	\$9.19	\$7.54	\$9.00	\$8.24	\$10.16	\$13.82	\$14.64	\$13.20
Location	0%	10%	0%	20%	0%	0%	-30%	-25%	-25%
Size	-1.3%	-0.8%	-2.5%	-2.4%	19.3%	-0.7%	1.3%	2.6%	-3.5%
Topography	0.0%	5.0%	0.0%	0.0%	0.0%	0.0%	0.0%	0.0%	0.0%
Demolition	-4.0%	-4.0%	28.0%	-4.0%	-4.0%	0.0%	0.0%	-4.0%	-4.0%
Offsite Ponding Basin	0.0%	0.0%	0.0%	0.0%	-10.0%	-10.0%	0.0%	0.0%	0.0%
Net Adjustment	-5.3%	10.2%	25.5%	13.6%	5.3%	-10.7%	-28.7%	-26.4%	-32.5%
Indicated Value of Subject	\$8.46	\$10.12	\$9.47	\$10.22	\$9.20	\$9.80	\$9.85	\$10.77	\$8.91
Average Indicated Value									
Gross Adjustment	15%	30%	40%	31%	45%	11%	31%	32%	44%

SALES COMPARISON APPROACH, CONTINUED

Reconciliation

The adjustments that have been made are somewhat subjective. However, the comparables resemble most of the subject's major features. The cumulative effect of the adjustments is to narrow the range of values and, on the whole, provide a reasonably supported opinion of value. The indicated values are as follows. The sales have been arranged by indicated value, from lowest to highest.

<u>Sale #</u>	<u>Indicated Value</u>	<u>Gross Adjustment</u>
Sale 1	\$8.46	15%
Pending Sale 9	\$8.91	44%
Pending Sale 6	\$9.08	11%
Sale 3	\$9.47	40%
Listing 5	\$9.20	45%
Average	\$9.57	
Sale 7	\$9.85	31%
Sale 2	\$10.12	30%
Sale 4	\$10.22	31%
Sale 8	\$10.77	32%

All of the sales are meaningful indicators of value and have been given consideration. After considering the comparable sales, I have estimated the value of the subject property at \$9.60 per square foot. Multiplying the subject's 66,211 square feet by \$9.60 per square foot yields a value rounded to \$635,000.

Estimated Market Value, Fee Simple
503 East College Drive, Cheyenne, WY
66,211 SF of Land
As Is As Of July 20, 2023

\$ 635,000

EXPOSURE TIME AND MARKETING TIME

Market value estimates imply that an adequate marketing effort and reasonable time for exposure occurred prior to the effective date of the appraisal.

Exposure Time is defined as follows:

An opinion, based on supporting market data, of the length of time that the property interest being appraised would have been offered on the market prior to the hypothetical consummation of a sale at market value on the effective date of the appraisal. *USPAP 2020-2021, The Appraisal Foundation, Definitions.*

Marketing Time is defined as follows:

The reasonable marketing time is an opinion of the amount of time it might take to sell a real or personal property interest at the concluded market value or at a benchmark price during the period immediately after the effective date of an appraisal. *USPAP 2020-2021, The Appraisal Foundation, Advisory Opinion 7.*

Many of the commercial sales in the region have no broker involved and many sales are not put into an MLS, so it is difficult to obtain the marketing history of many of the sales. Income producing properties typically sell faster than non-income producing properties. Special use properties often have a smaller number of potential buyers and may have a longer average exposure time. Land also typically has a notably longer average exposure time.

The Cheyenne MLS typically has about 60-90 active **commercial land** parcels listed for sale for over \$50,000. Over the past two years, Cheyenne MLS shows the following statistics for sold commercial land in Laramie County. The average marketing time is 16.3 months. The median marketing time is 3.7 months. However, parcels of land are often listed multiple times with multiple listing agents.

Home

Lots/Land

Criteria

Map Search

Default MLS Defined Spreadsheet (39)

+ New Search

Checked

All

Email

Share

Save

Print

Export

Customize

Correction

Actions

More

TOTAL		HIGH	LOW	AVG	MED			HIGH	LOW	AVERAGE	MEDIAN	TOTAL PRICE
LISTING COUNT:	39	DAYS ON MARKET:	4634	0	488	112	LIST PRICE:	\$1,700,000	\$75,000	\$564,150	\$435,600	\$22,001,873
							SOLD PRICE:	\$1,500,000	\$45,000	\$495,236	\$410,000	\$19,314,230

Based on information provided by the MLS, comparable sales, and conversations with knowledgeable market participants I have estimated the exposure time for the subject property at 24 months or less. This assumes professional marketing and a competitive list price.

Based on information provided by the MLS, comparable sales, and conversations with knowledgeable market participants I have estimated the marketing time for the subject property at 24 months or less at the estimated market value as concluded in this report. This assumes professional marketing and a competitive list price.

CERTIFICATION

I, Christopher Brown, certify that, to the best of my knowledge and belief:

- the statements of fact contained in this report are true and correct.
- the reported analyses, opinions, and conclusions are limited only by the reported assumptions and limiting conditions, and are my personal, impartial, and unbiased professional analyses, opinions, and conclusions.
- I have no present or prospective interest in the property that is the subject of this report, and no personal interest with respect to the parties involved.
- I have performed no services, as an appraiser or in any other capacity, regarding the property that is the subject of this report within the three-year period immediately preceding acceptance of the assignment.
- I have no bias with respect to the property that is the subject of this report or to the parties involved with this assignment.
- my engagement in this assignment was not contingent upon developing or reporting predetermined results.
- my compensation for completing this assignment is not contingent upon the development or reporting of a predetermined value or direction in value that favors the cause of the client, the amount of the value opinion, the attainment of a stipulated result, or the occurrence of a subsequent event directly related to the intended use of this appraisal.
- I have made a personal inspection of the property that is the subject of this report.
- No one provided assistance in preparation of this report.
- that the appraisal assignment was not based on a requested minimum valuation, a specific valuation, or the approval of a loan.
- I acknowledge that I have the appropriate education and experience to complete the assignment in a competent manner. The reader is referred to the appraiser's statement of qualifications in the Addenda. I am properly certified to prepare the appraisal. The reader is referred to the State Appraiser Board certificate in the Addenda.
- I have never been publicly censured, suspended or expelled by an appraisal organization.
- my analyses, opinions and conclusions were developed, and this report has been prepared, in conformity with the Uniform Standards of Professional Appraisal Practice.
- the reported analyses, opinions and conclusions were developed, and this report has been prepared, in conformity with the requirements of the Code of Professional Ethics and Standards of Professional Practice of the Appraisal Institute.
- the use of this report is subject to the requirements of the Appraisal Institute relating to review by its duly authorized representatives.
- As of the date of this report, I have completed the Standards and Ethics Education Requirements for Candidates of the Appraisal Institute.



Christopher S. Brown

ADDENDA

CHRISTOPHER S. BROWN, MAI

EMPLOYMENT:

Appraisals Inc. February 2004 to Present
7915 Brachill Road, Cheyenne, WY 82009
Mobile Phone: #307-286-8980; chris@appraisewyoming.com
Brown Appraisal Services; partner from May 1995 to February 2004
Real Property Analysts in Fresno, California; commercial real estate appraiser
from 8/90- 4/95

PROFESSIONAL ORGANIZATIONS:

MAI, Appraisal Institute from February 1997 until present.

CERTIFICATION:

Wyoming State Certified General Real Estate Appraiser #321 - Expiration date
July 17, 2024.

EDUCATION:

Bachelor of Science Degree/Business Finance - Brigham Young University -
Provo, Utah, 1987.

Appraisal Education:	<u>Course Hours</u>
Course 8-1: Appraisal Principles -- 6/16/90	38
Course 8-2: Residential Valuation -- 6/23/90	39
Standards of Professional Practice - Part A -- 3/12/91	15
Standards of Professional Practice - Part B -- 3/14/91	15
Course 120 - Appraisal Procedures -- 9/18/93	3
Course 310 - Basic Income Capitalization -- 11/20/93	39
Course 510 - Advanced Income Capitalization -- 3/26/94	40
Course 540 - Report Writing and Valuation Analysis -- 5/13/95	40
Course 550 - Advanced Applications -- 6/17/95	40
Demonstration Report Writing Seminar -- 1/14/96	14
Comprehensive Appraisal Workshop -- 7/26/96	21
Alternative Residential Reporting Forms - 9/12/97	7
Eminent Domain - Condemnation Appraising - 12/4/97	7
Litigation Skills for the Appraiser - 1/30/98	7
The Internet and the Appraiser - 5/8/98	7
Standards of Professional Practice, Part A (USPAP) - 6/4/98	16
Young Advisory Council/Leadership Development (3/19/99)	9
Loss Prevention Seminar (9/10/98)	4
Appraisal Review, Residential (9/11/98)	7
Cost Approach Seminar (11/13/98)	8
Appraising Manufactured Housing (1/29/99)	7
FHA and the Appraisal Process (8/10/99)	7
Partial Interest Valuation, Undivided (9/24/99)	7
USPAP A & B (11/1/99)	23
USPAP (1/15/03)	16
USPAP (1/28/04)	7
Factors Affecting the Real Estate Transaction (2/19/04)	8
Analyzing Distressed Real Estate (7/15/04)	4

Online Small Hotel/Motel Valuation (7/15/04)	7
USPAP 2005 (5/30/06)	7
USPAP 2006 (5/11/06)	7
Evaluating Commercial Construction (3/13/07)	16
Analyzing Operating Expenses (6/7/07)	7
Business Practices and Ethics (6/14/07)	8
USPAP 2008 (1/15/08)	7
USPAP 2009 (1/14/09)	7
Rates and Ratios, GIM's, OARs, and DCF (5/5/09)	7
USPAP 2010 (1/12/10)	7
Appraisal Standards for Federal Land Acquisitions (2/27/10)	16
Business Practices and Ethics (6/24/10)	5
Understanding the Appraiser's Methods (5/20/11)	4
Law of Easements and Eminent Domain (11/18/11)	6
USPAP (1/12/12)	7
Fundamentals of Separating Real, Personal Property and Intangible Business Assets (3/9/12)	15
Minerals Appraisal Seminar (9/13/13)	8
USPAP (1/9/2014)	7
Subdivision Valuation (6/28/14)	7
Business Practices and Ethics (7/4/14)	7
Discounted Cash Flow Model (7/4/14)	5
Supervisor-Trainee Course (9/9/15)	4
USPAP (1/12/2016)	7
Advanced Spreadsheet Modeling (1/14/16)	14
Wyoming Water Rights 101 (12/8/16)	4
USPAP (7/15/20)	7
Appraisal of Fast Food Facilities (8/17/20)	7
Appraisal of Self-Storage Facilities (8/19/20)	7
Appraisal of Industrial Incubators (8/26/20)	7
USPAP (5/20/22)	7
Introduction to Green Buildings (6/17/20)	7
Subdivision Valuation (6/23/22)	7
Small Hotel / Motel Valuation (6/27/22)	7



License Number 321

NON TRANSFERABLE

CERTIFIED REAL ESTATE APPRAISER PERMIT

Issued : 07/18/2022

Expires: 07/17/2024

Christopher S. Brown

Certified General Appraiser Permit

AS PROVIDED FOR BY THE LAWS OF WYOMING.

Appraisals, Inc
7915 Braehill Rd
Cheyenne WY 82009

AUTHORIZED BY THE WYOMING CERTIFIED
REAL ESTATE APPRAISER BOARD
WITNESS MY HAND AND THE
OFFICIAL SEAL AT CHEYENNE, WYOMING.

A blue ink signature of Rebecca J. Zisch.

Rebecca J. Zisch, Executive Director



ALL FIELDS DETAIL



MLS # 79985
Class Lots/Land
Type Unimproved Residential
County LARAMIE
Asking Price \$399,500
Address TBD GREENWAY ST
City Cheyenne
State WY
Zip 82001
Status SOLD
Sale/Rent For Sale
IDX Include Y

Manufac or Stick Blt only,
Modular Allowd Manuf & Mod
 not allwd
City/County Lot City



GENERAL

VOW Include	Yes	VOW Address	Yes
VOW Comment	Yes	VOW AVM	Yes
Agent	Steven Prescott - Cell: 307-630-9342	Listing Office 1	RE/MAX Capitol Properties - Voice: 307-635-0303
Sub Agency	0	Buyer Agency	3
Intermediary	3	Customer	3
Variable	Y	Exclusive Agency	N
Buyer Exclusions	N	Subdivision	CROSSROADS CENT
Listing Date	9/1/2020	Expiration Date	8/31/2021
Pin #	13154000200041	Legal Description	Lengthy - see County Assessor
Owner	First Interstate Bank	Occupant	Vacant
Update Date	6/22/2021	Lot Size	49223
Acreage	1.13	Original Price	\$399,500
Associated Document Count	1	Virtual Tour	Virtual Tour
Off Market Date	9/4/2020	Agent Hit Count	0
Client Hit Count	1	PIDN#	14663410900600
Earnest Money Payable to	RE/MAX Capitol Properties	Cumulative DOM	3
Picture Count	1	Days On Market	3
Input Date	9/4/2020 4:17 PM	Update Date	6/22/2021 1:39 PM
Status Date	6/17/2021	Input Date	9/4/2020 4:17 PM

FEATURES

Horse Features	Gas	Sewer	Road Access
No Horses	CLFP	None	City Street
Deed Transfer by	Nearby	Miscellaneous	Year Round
General Warranty	Electric	Covenants Apply	Sellers Title Company
Showing Instructions	CLFP	Proposed Financing	First American Title
Vacant	Nearby	Cash	Services Provided
	Water	Conventional	All Services
	None		

FINANCIAL

Taxes 1984.82	Tax Year 2018
HOA Fee No	

SOLD STATUS

How Sold	Cash	Contract Date	9/4/2020
Closing Date	6/16/2021	Sold Price	\$399,500
Selling Agent 1	Steven Prescott - Cell: 307-630-9342	Selling Office 1	RE/MAX Capitol Properties - Voice: 307-635-0303
Special Conditions	Arms Length Sale	Sold Data Verified by	Both Listing and Selling Agent

ADDENDUM

Addendum Per BOPU development fees for water/sewer (tap fees) would be approximately \$23,000 for 2018 year.

REMARKS

Remarks Fantastic retail or office pad available with high-traffic count on Lincolnway adjacent to Fitness 307. This city lot has easy access to I-80 and College Dr. and is zoned MUB.

ALL FIELDS DETAIL



MLS # 79281
Class Lots/Land
Type Unimproved Commercial
County LARAMIE
Asking Price \$462,000
Address 1bd E PERSHING BLVD
City Cheyenne
State WY
Status SOLD
Sale/Rent For Sale
IDX Include Y

Manufac or
Modular Allowd
City/County Lot

Manuf & Mod
 allwd w/ no
 covenants
 City



GENERAL

VOW Include	Yes	VOW Address	Yes
VOW Comment	Yes	VOW AVM	Yes
Agent	Steven Borin - Cell: 307-421-9430	Listing Office 1	eXp Realty, LLC - 866-873-0565
Sub Agency	2.5	Buyer Agency	2.5
Intermediary	2.5	Customer	2.5
Variable	n	Exclusive Agency	n
Buyer Exclusions	n	Subdivision	SUNNYSIDE ADD
Listing Date	7/9/2020	Expiration Date	3/31/2022
Legal Description	SUNNYSIDE ADDITION, 2ND FILING: S1/2 S1/2 TRACTS 2	Owner	Mark W Anderson
Update Date	10/4/2021	Acreage	1.27
Original Price	\$462,000	Associated Document Count	2
Virtual Tour	Virtual Tour	Off Market Date	5/5/2021
Agent Hit Count	88	Client Hit Count	8
Cumulative DOM	300	Picture Count	2
Days On Market	300	Days On MLS	300
Input Date	7/9/2020 5:45 PM	Update Date	10/4/2021 6:52 PM
Status Date	7/9/2021	Input Date	7/9/2020 5:45 PM

FEATURES

Horse Features	Gas	Land Characteristics	Road Access
No Horses	Nearby	Native Grass	No Road
Outside Features	Electric	Miscellaneous	Sellers Title Company
None	At Street	None	Flying S Title & Escrow
Deed Transfer by	Water	HOA Fees Include	Services Provided
General Warranty	Public (City) Water	Other	Limited Service
Showing Instructions	Sewer	Proposed Financing	
Vacant	City Sewer	Cash	
		Conventional	

FINANCIAL

Taxes 1,460.82

HOA Fee No

SOLD STATUS

How Sold	Conventional	Contract Date	5/5/2021
Closing Date	7/9/2021	Sold Price	\$462,000
Selling Agent 1	Steven Borin - Cell: 307-421-9430	Selling Office 1	eXp Realty, LLC - 866-873-0565
Special Conditions	Non-arms Length Sale	Sold Data Verified by	Both Listing and Selling Agent

REMARKS

Remarks The property is highly visible on Pershing with good traffic counts, the population is growing quickly to the East .Perfect for commercial business that needs great visibility.Located next to Maverick gas station which is increasing its productivity yearly. Traffic counts available

ADDITIONAL PICTURES



ALL FIELDS DETAIL

MLS # 80522
Class Commercial/Industrial
Type Commercial
County LARAMIE
Asking Price \$230,000
Address 1110 & 1106 S GREELEY HWY
City Cheyenne
State WY
Zip 82007
Status SOLD
Sale/Rent For Sale
IDX Include Y

Parking Capacity 11 - 20
Shared Parking No
Stories 1

**GENERAL**

VOW Include Yes
VOW Comment Yes
Agent Marilyn Thomasee - Cell: 307-630-5080
Sub Agency 0
Intermediary 2.5
Variable N
Buyer Exclusions N
Listing Date 10/20/2020
Tour Date 11/4/2020
Legal Description All that part of Tract 40, Desc as Beg, see city rec
Occupant Vacant
Acreage 0.77
Total Sq Ft 4978
Stories 1
Special Instructions Take a flashlight No utilities.
Original Price \$230,000
Cumulative DOM 155
Days On Market 155
Days On MLS 148
Update Date 5/18/2021 4:25 PM
Input Date 10/27/2020 1:46 AM

VOW Address Yes
VOW AVM Yes
Listing Office 1 #1 Properties - Voice: 307-634-2222
Buyer Agency 2.5
Customer 2.5
Exclusive Agency N
Subdivision ALLISON TRACTS
Expiration Date 10/20/2021
Year Built 1955
Owner Maria Guadalupe Rascon
Lot Size 33541
Business Name n/a
Update Date 5/18/2021
Ceiling Height 8
Associated Document Count 1
SqFt Source Previous Listing
Picture Count 0
Sold Price Per SQFT \$46.20
Input Date 10/27/2020 1:46 AM
Status Date 4/30/2021

FEATURES

Building Type	Site and Access	Roof	Proposed Financing
Commercial	High Visibility	Other	Cash
Construction	Frontage	Disability	Sellers Title Company
Other	Highway Access	Level Lot	Summit Title
Inclusions	Utilities/Heat	Owner or Landlord Pays	Services Provided
Building	City Water	None	All
Land	Natural Gas	Deed Transfer by	Miscellaneous
Building	Showing Instructions	General Warranty	Covenants Apply
Other	Vacant		Assoc Docs In Paragon

FINANCIAL

Off Market Date 3/24/2021	Lease Price \$0.00
Agent Hit Count 144	Client Hit Count 4
Taxes 1290	Tax Year 2019

SOLD STATUS

How Sold Cash	Contract Date 3/24/2021
Closing Date 4/27/2021	Sold Price \$230,000
Selling Agent 1 Ed Bales - Home: 307-631-7567	Selling Office 1 RE/MAX Capitol Properties - Voice: 307-635-0303
Special Conditions None of the above	Sold Data Verified by Both Listing and Selling Agent

REMARKS

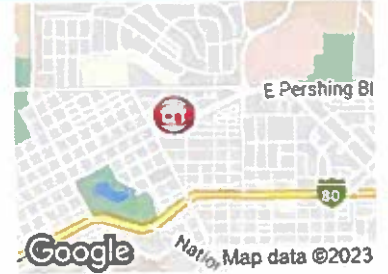
Remarks High visibility commercial lot zoned CB on So. Greeley Hwy. Originally the A & W Root Beer building. Land does have some structures, but probably a tear down. Very high traffic area. Close to LCCC College & new housing subdivision.

ALL FIELDS DETAIL



MLS # 88754
Class Lots/Land
Type Unimproved
County LARAMIE
Asking Price \$345,000
Address TBD WARREN AVE
City Cheyenne
State WY
Zip 82001
Status SOLD
Sale/Rent For Sale
IDX Include Y

Manufac or Stick Blt only,
Modular Allowd Manuf & Mod
 not allwd
City/County Lot City



GENERAL

VOW Include Yes
VOW Comment Yes
Agent Teri Cassidy - Cell: 404-783-5555
Sub Agency 0
Intermediary 3.0
Variable N
Buyer Exclusions N
Listing Date 1/30/2023
Legal Description Lots 12-22, Block 720
Occupant Vacant
Lot Size 34848
Special Instructions Call LA on exclusions
Associated Document Count 1
Agent Hit Count 0
Earnest Money Payable to #1 Properties
Picture Count 3
Update Date 2/2/2023 10:57 AM
Input Date 1/30/2023 12:03 PM

VOW Address Yes
VOW AVM Yes
Listing Office 1 #1 Properties - Voice: 307-634-2222
Buyer Agency 3.0
Customer 3.0
Exclusive Agency Y
Subdivision CITY OF CHEYENNE
Expiration Date 3/31/2023
Owner Westland Holdings, Inc.
Update Date 2/2/2023
Acreage 0.82
Original Price \$345,000
Off Market Date 1/30/2023
Client Hit Count 3
Cumulative DOM 0
Input Date 1/30/2023 12:03 PM
Status Date 2/2/2023

FEATURES

Deed Transfer by Electric
 General Warranty At Street
Showing Instructions Water
 Call & Go None
Gas Sewer
 At Street None

Proposed Financing
 Cash
 Conventional
Road Access
 City Street

Sellers Title Company
 Townsquare Title
Services Provided
 All Services

FINANCIAL

Taxes 470
HOA Fee No

Tax Year TBD

SOLD STATUS

How Sold Other
Closing Date 2/2/2023
Selling Agent 1 Brandon Swain - Home: 307-214-9634
Special Conditions None of the above

Contract Date 1/30/2023
Sold Price \$330,000
Selling Office 1 RE/MAX Capitol Properties - Voice: 307-635-0303

REMARKS

Remarks INCREDIBLE LOCATION with tons of potential for commercial or industrial development. 10 city lots!!! Located on nearly an acre with high visibility frontage. Currently zoned LI and located one block from I-80 on-ramp.

ADDITIONAL PICTURES



**FOR
SALE**

**7.4 Acres College Dr.
Cheyenne, WY**

COMMERCIAL

LAND

\$3,200,000



RED

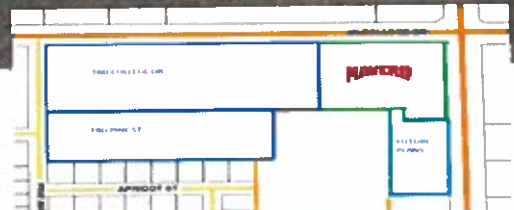
DIAMOND



Undeveloped Land: 7.4 acres zoned CB. This property has quick access to I-25 & I-80 with a new Microsoft facility just down the street. Fast growing corner with College Dr. frontage, curb cuts and water tap. This location is ideal for banks, retail, fast food, storage or...

**Single & multi-family close-by
Zoned Community Business
Seller may Divide/BTS
Close to Schools/Shopping**

**I-25 to the West
I-80 to the North
Microsoft close-by
High Traffic corner**



Presented by Kevin Perry
Kevin@RedDiamond.RealEstate

www.RedDiamond.RealEstate
307-630-5890 970-673-2625



ALL FIELDS DETAIL



(42) MLS #	86681	(55) Parking Capacity	50 or More
(43) Class	Commercial /Industrial	(56) Shared Parking	No
(45) Type	Commercial	(57) Stories	Other
(46) County	LARAMIE		
(47) Asking Price	\$3,200,000		
(48) Address	TBD COLLEGE DR		
(49) Unit #	NA		
(50) City	Cheyenne		
(51) State	WY		
(52) Zip	82007		
(53) Status	ACTIVE		
(54) Sale/Rent	For Sale		
(99) IDX Include	Y		



GENERAL

(36) VOW Include	Yes	(38) VOW Address	Yes
(39) VOW Comment	Yes	(40) VOW AVM	Yes
(58) Agent	Kevin Perry - cell: 970-673-2625	(60) Listing Office 1	Red Diamond Realty - Cell: 970-573-2814
(61) Sub Agency	2%	(62) Buyer Agency	2%
(63) Intermediary	2%	(64) Customer	2%
(65) Variable	N	(66) Exclusive Agency	N
(67) Buyer Exclusions	N	(68) Subdivision	COUNTRY HOMES
(69) Listing Date	7/13/2022	(70) Expiration Date	7/13/2023
(72) Year Built	0	(74) Legal Description	COUNTRY HOMES, 5TH & 6TH FIL: LOTS 1, BLOCK 1
(75) Owner	ooRM	(77) Occupant	Yes
(80) Acreage	7.40	(82) Office Sq Ft	0
(83) Warehouse Sq Ft	0	(84) Retail Sq Ft	0
(85) Other Sq Ft	0	(88) Total Sq Ft	322344
(90) Update Date	11/5/2022	(94) Associated Document Count	0
(95) Original Price	\$3,000,000	(7) SqFt Source	Co Assessor
(5) Earnest Money Payable to	Town Square Title	(6) Cumulative DOM	115
(33) Geocode Quality	Manually Placed Pin	(17) Picture Count	9
(18) Days On Market	115	(22) Days On MLS	113
(0) DIRECTIONS	Corner of College Drive and S. Greeley HWY	(23) Input Date	7/15/2022 9:31 AM
(24) Update Date	11/5/2022 6:26 PM	(86) Status Date	8/3/2022
(87) Input Date	7/15/2022 9:31 AM		

FEATURES

Building Type	Utilities/Heat	Roof	Sellers Title Company
Commercial	City Water	Other	Townsquare Title
Other	Public Sewer		Services Provided
Construction	Showing Instructions	Deed Transfer by	All
Other	Call Listing Agent	General Warranty	Miscellaneous
	Just Go Knock	Proposed Financing	See Addendum
	Vacant	Consider All	

FINANCIAL

(103) Lease Price	\$0.00	(104) Agent Hit Count	92
(105) Client Hit Count	2	(106) Taxes	527.69
(107) Tax Year	2021		

ADDENDUM

(98) Addendum water taps paid and in. Buyer or Buyers agent to verify all info. Includes 2.79 acre lot on corner of Pine and College.

REMARKS

(115) Remarks Busy growing corner on Hwy 85 and College drive Zoned CB. This property faces College Dr. with 2 separate access aprons. Great visibility in fast growing corridor. Close to schools, Dollar Store, and Safeway. Next to Maverick Gas Station This is a fabulous location for Banks, Fast Food, Wholesale/ Retail Office, Storage, Medical, Hotel, Churches, Bars, Childcare, Fabrication, Transportation. Some Businesses may require board approval. Microsoft has built a new facility on the south side of Cheyenne



Commercial Lots for Sale

Lot Price \$580,000

Lot 1 1.3 acres \$580,000
310' frontage
170' deep
56,950 sq ft

Lot 2 1.35 acres \$580,000
320' frontage
170' deep
58,806 sq ft

Lot 3 1.48 acres \$580,000
338' frontage
180' deep
64,469 sq ft



ZONING:  CB Community Business

Community Business areas are to be primarily used as retail centers which serve a number of neighborhoods and are located where retail stores and services predominate

DOWNTOWN

Wyoming State Capitol
City Library
New Children's Museum
Historic District
Main Post Office
Cheyenne Regional Airport

BUSINESSES

Warren Airforce Base
Microsoft
Sierra Trading Post Distribution
Walmart Distribution
Lowes Distribution
Community College LCCC
I-25: 1 mile
I-80: 2 miles

These 3 lots are 1.3 acres each. This property has quick access to I-25 & I-80 with a new Microsoft facility just down the street. Fast growing corner with S Greeley Hwy frontage, curb cuts and water tap. This location is ideal for banks, retail, fast food, storage or...



Kevin Perry
Commercial/Residential/Land
970-673-2625
Red Diamond Realty

All information is believed accurate, but not guaranteed. Information is subject to change without notice. If measurements, photos and data provided are of a material matter to buyer, then buyer should verify all information prior to purchasing. www.RedDiamond.RealEstate Kevin@RedDiamond.RealEstate

ALL FIELDS DETAIL

MLS # 86109
Class Lots/Land
Type Unimproved
 Commercial
County LARAMIE
Asking Price \$1,498,000
Address 3406 PERSHING
 BLVD
City Cheyenne
State WY
Zip 82001
Status SOLD
Sale/Rent For Sale
IDX Include Y

Manufac or Stick Blt only.
Modular Allowd Manuf & Mod
 not allwd
City/County Lot City

**GENERAL**

VOW Include Yes
VOW Comment Yes
Agent Codee Dalton - cell: 307-871-8098
Sub Agency 0
Intermediary 2.5
Variable N
Buyer Exclusions N
Listing Date 3/28/2022
Owner Zola Mae Hedrick
Lot Size 83,200
Original Price \$1,580,000
Virtual Tour Virtual Tour
Agent Hit Count 133
Cumulative DOM 407
Days On Market 407
Input Date 6/5/2022 10:34 AM
Status Date 7/17/2023

VOW Address Yes
VOW AVM Yes
Listing Office 1 #1 Properties - Voice: 307-634-2222
Buyer Agency 2.5
Customer 2.5
Exclusive Agency N
Subdivision SUNNYSIDE ADD
Expiration Date 3/31/2024
Update Date 7/17/2023
Acreage 1.91
Associated Document Count 0
Off Market Date 5/9/2023
Client Hit Count 4
Picture Count 9
Days On MLS 338
Update Date 7/17/2023 1:30 PM
Input Date 6/5/2022 10:34 AM

FEATURES

Deed Transfer by
 General Warranty
Showing Instructions
 Call Listing Agent
Gas
 On Property
 Black Hills Energy
Electric
 On Property
Water
 Private Well
Sewer
 Septic

Land Characteristics
 Corner Lot
Proposed Financing
 Cash
 Conventional

Road Access
 City Street
Sellers Title Company
 First American Title
Services Provided
 All Services

FINANCIAL

Taxes 1,300.00
HOA Fee No

Tax Year 2021

SOLD STATUS

How Sold Cash
Closing Date 7/14/2023
Selling Agent 1 Thomas Jacobson - Cell: 307-701-1111
Special Conditions None of the above

Contract Date 5/9/2023
Sold Price \$1,150,000
Selling Office 1 #1 Properties - Voice: 307-634-2222
Sold Data Verified by Both Listing and Selling Agent

ADDENDUM

Addendum Building currently has month to month lease. Billboard on property currently has contract with LAMAR.

REMARKS

Remarks This 1.91 acre Commercial lot is zoned CB, corner lot is in proximity to residential housing, schools, and other commercial establishments. High traffic and visibility, ready for your business to start or expand. Opportunity Zone. Traffic count of 16,502. Building on property is 160x40 and being sold AS-IS.

ADDITIONAL PICTURES



DISCLAIMER

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ALL FIELDS DETAIL



MLS # 84294
Class Lots/Land
Type Unimproved Commercial
County LARAMIE
Asking Price \$1,467,135
Address LOT 1A W LINCOLNWAY
City Cheyenne
State CO
Zip 82009
Status SOLD
Sale/Rent For Sale
IDX Include Y

Manufac or Modular Allowd Stick Blt only, Manuf & Mod not allwd
City/County Lot City



GENERAL

VOW Include	Yes	VOW Address	Yes
VOW Comment	Yes	VOW AVM	Yes
Agent	Amy Smith - Cell: 307-214-5583	Listing Office 1	Frontier Home and Ranch Real Estate - Office: 307-426-5030
Sub Agency	N/A	Buyer Agency	2.5
Intermediary	2.5	Customer	2.5
Variable	N	Exclusive Agency	N
Buyer Exclusions	N	Subdivision	NONE
Listing Date	11/11/2021	Expiration Date	6/30/2023
Legal Description	TBD by Survey	Owner	1600 Hitching Post LLC
Update Date	6/21/2023	Acreage	2.30
Original Price	\$1,402,632	Associated Document Count	0
Off Market Date	9/12/2022	Agent Hit Count	0
Client Hit Count	0	Earnest Money Payable to	SUMMIT TITLE SERVICES
Cumulative DOM	305	Picture Count	12
Days On Market	305	Days On MLS	301
Input Date	11/15/2021 8:10 PM	Update Date	6/21/2023 12:30 PM
Status Date	6/14/2023	Input Date	11/15/2021 8:10 PM

FEATURES

Deed Transfer by	Water	Proposed Financing	Sellers Title Company
General Warranty	Public (City) Water	Cash	Summit Title
Gas	Sewer	Conventional	Services Provided
CLFP	City Sewer		All Services
Electric			
CLFP			

FINANCIAL

Taxes	TBD	HOA Fee	No
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SOLD STATUS

How Sold	Cash	Contract Date	9/12/2022
Closing Date	6/13/2023	Sold Price	\$1,467,135
Selling Agent 1	Robert Phillips - Cell: 307-630-0396	Selling Office 1	#1 Properties - Voice: 307-634-2222
Special Conditions	None of the above	Sold Data Verified by	Listing Agent

ADDITIONAL PICTURES





DISCLAIMER

Listings contained herein may be listed by another real estate company who is associated with the Cheyenne MLS. Members of the Cheyenne MLS, are authorized to market all properties submitted to the MLS. This information is compiled for use and reliance upon by MLS members only. The listing broker's offer of compensation is made only to participants of the MLS where the listing is filed. Any use or reliance upon this information by a non-MLS member is unauthorized and prohibited. This information may be inaccurate, erroneous or outdated. Therefore, independent verification of this information is required.

ALL FIELDS DETAIL

MLS # 90059
Class Lots/Land
Type Unimproved Commercial
County LARAMIE
Asking Price \$301,710
Address Lot 4 PAUL SMITH WAY
City Cheyenne
State WY
Zip 82009
Status Pending
Sale/Rent For Sale
IDX Include Y

Manufac or Modular Allowd Stick Blt only, Manuf & Mod not allwd
City/County Lot City

**GENERAL**

VOW Include Yes
VOW Comment Yes
Agent Amy Smith - Cell: 307-214-5583
Sub Agency N/A
Intermediary 2.5
Variable N
Buyer Exclusions N
Listing Date 5/31/2023
Legal Description Call LA
Update Date 6/22/2023
Acreage 0.46
Associated Document Count 0
Agent Hit Count 61
Earnest Money Payable to COWBOY STATE TITLE
Picture Count 24
Days On MLS 88
Update Date 6/22/2023 9:59 AM
Input Date 6/1/2023 3:28 PM

VOW Address Yes
VOW AVM Yes
Listing Office 1 Frontier Home and Ranch Real Estate - Office: 307-426-5030
Buyer Agency 2.5
Customer 2.5
Exclusive Agency N
Subdivision HITCHING POST PLAZA
Expiration Date 5/31/2024
Owner 1600 Hitching Post LLC
Lot Size 20,114
Original Price \$301,710
Off Market Date 6/20/2023
Client Hit Count 1
Cumulative DOM 89
Days On Market 89
Input Date 6/1/2023 3:28 PM
Status Date 6/22/2023

FEATURES

Deed Transfer by General Warranty	Electric At Street Black Hills Energy	Sewer City Sewer	Sellers Title Company Cowboy State Title
Gas At Street Black Hills Energy	Water Public (City) Water	Proposed Financing Cash Conventional	Services Provided All Services

FINANCIAL

Taxes TBD **HOA Fee** No

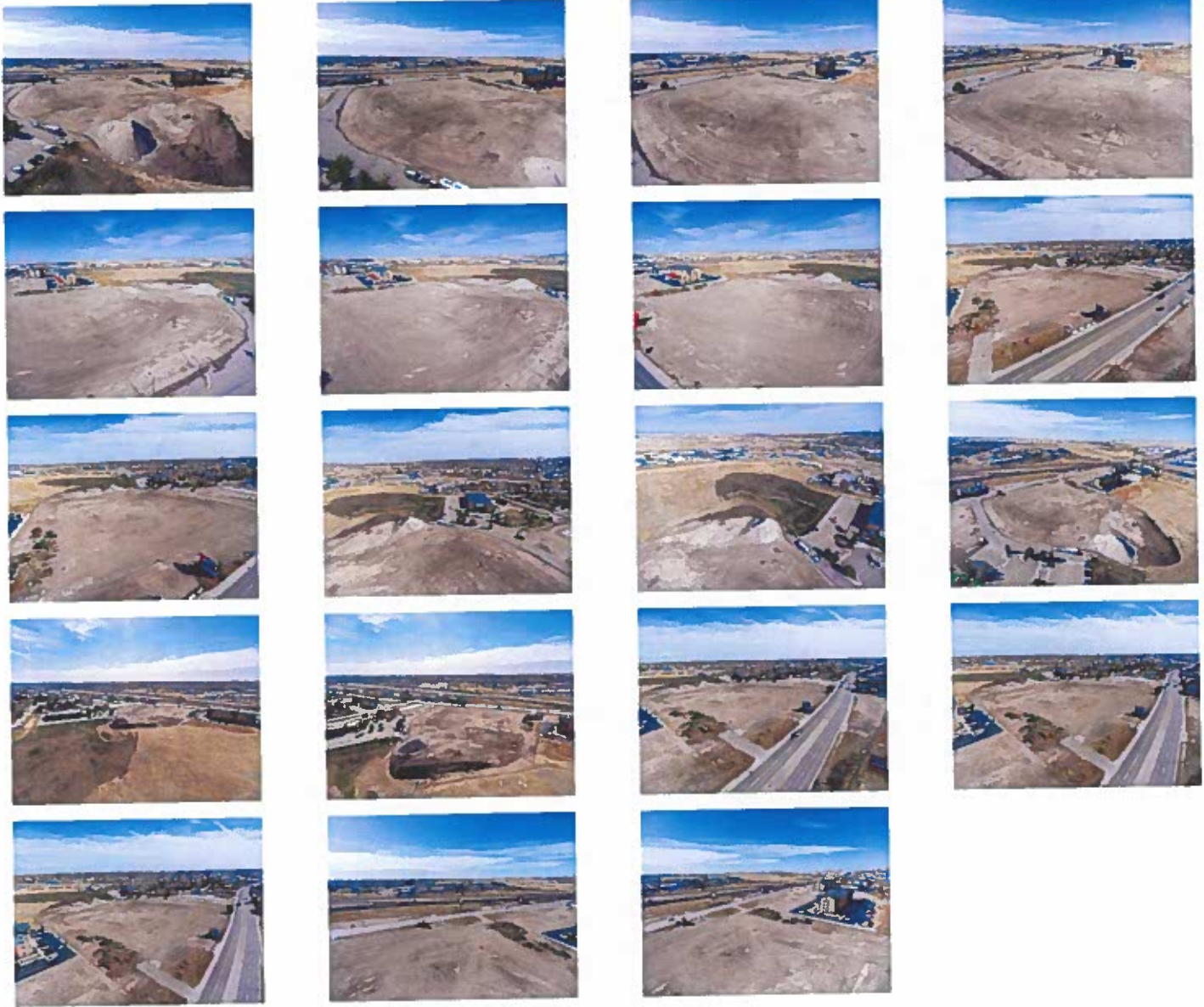
SOLD STATUS

Contract Date 6/20/2023 **Closing Date** 8/31/2023

REMARKS

Remarks .46 acre lot conveniently located just off of West Lincolnway with easy access to I25 and I80 on the west edge of Cheyenne. This up and coming area promises to be a beautiful addition to the city of Cheyenne! Estimated completion date for infrastructure August 2023.

ADDITIONAL PICTURES



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